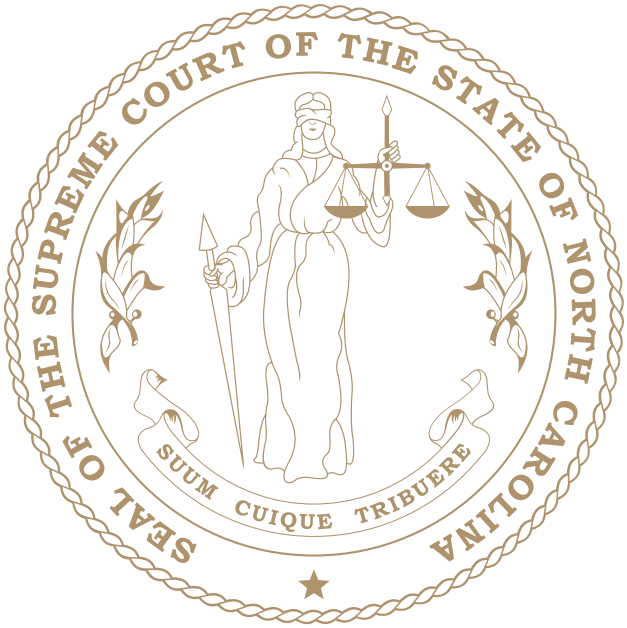
NORTH CAROLINA RULES OF APPELLATE PROCEDURE



★★★

Codified by the Office of Administrative Counsel, Supreme Court of North Carolina

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Table of Contents

Foreword

Foreword 13

Article I
Applicability of Rules

Rule 1. Title; Scope of Rules; Trial Tribunal Defined 14
(a) Title.
(b) Scope of Rules.
(c) Rules Do Not Affect Jurisdiction.
(d) Definition of Trial Tribunal.

Rule 2. Suspension of Rules 14

Article II
Appeals from Judgments and Orders of Superior Courts and District Courts

Rule 3. Appeal in Civil Cases—How and When Taken 15
(a) Filing the Notice of Appeal.
(b) Special Provisions.
(c) Time for Taking Appeal.
(d) Content of Notice of Appeal.
(e) Service of Notice of Appeal.

Rule 3.1. Review in Cases Governed by Subchapter I of the Juvenile Code 16
(a) Scope.
(b) Filing the Notice of Appeal.
(c) Expediting the Delivery of the Transcript.
(d) Expediting the Filing of the Record on Appeal.
(e) No-Merit Briefs.
(f) [Reserved]
(g) Motions for Extensions of Time.
(h) Duty of Trial Counsel.

(i) [Reserved]
(j) Calendaring Priority

Rule 4. Appeal in Criminal Cases—How and When Taken 18
(a) Manner and Time.
(b) Content of Notice of Appeal.
(c) Service of Notice of Appeal.
(d) To Which Appellate Court Addressed.

Rule 5. Joinder of Parties on Appeal 18
(a) Appellants.
(b) Appellees.
(c) Procedure after Joinder.

Rule 6. Security for Costs on Appeal 19
(a) In Regular Course.
(b) *In Forma Pauperis* Appeals.
(c) Filed with Record on Appeal.
(d) Dismissal for Failure to File or Defect in Security.
(e) No Security for Costs in Criminal Appeals.

Rule 7. Transcripts 20
(a) Scope.
(b) Ordering by a Party.
(1) Transcript Contract.
(2) Service of Transcript Contract.
(3) Transcript Documentation.
(4) Service of Transcript Documentation.
(c) Ordering by the Clerk of Superior Court.
(1) Appellate Entries.
(2) Service of Appellate Entries.
(d) Formatting.
(e) Delivery.
(1) Deadlines.
(2) Certification.
(f) [Reserved]
(g) Neutral Transcriptionist.

Rule 8. Stay Pending Appeal 21
(a) Stay in Civil Cases.
(b) Stay in Criminal Cases.

Rule 9. The Record on Appeal 22
(a) Function; Composition.
(1) Composition of the Printed Record in Civil Actions and Special Proceedings.
(2) Composition of the Printed Record in Appeals from Superior Court Review of Administrative Boards and Agencies.
(3) Composition of the Printed Record in Criminal Actions.
(b) Form of Printed Record; Amendments.
(1) Order of Arrangement.
(2) Inclusion of Unnecessary Matter; Penalty.
(3) Filing Dates and Signatures on Documents.
(4) Pagination; Counsel Identified.
(5) Additions and Amendments to Record on Appeal.
(c) Presentation of Testimonial Evidence and Other Proceedings.
(1) When Testimonial Evidence, Voir Dire, Statements and Events at Evidentiary and Non-Evidentiary Hearings, and Other Trial Proceedings Narrated—How Set Out in Printed Record.
(2) Designation that Transcript of Proceedings in Trial Tribunal Will Be Used.
(3) Transcript of Proceedings—Settlement, Filing, Notice, Briefs.
(4) Presentation of Discovery Materials.
(5) Electronic Recordings.
(d) Exhibits and Other Items.
(1) Copies.
(2) Originals.

Rule 10. Preservation of Issues at Trial; Proposed Issues on Appeal 31
(a) Preserving Issues During Trial Proceedings.
(1) General.
(2) Jury Instructions.
(3) Sufficiency of the Evidence.
(4) Plain Error.
(b) Appellant's Proposed Issues on Appeal.
(c) Appellee's Proposed Issues on Appeal as to an Alternative Basis in Law.

Rule 11. Settling the Record on Appeal 33
(a) By Agreement.
(b) By Appellee's Approval of Appellant's Proposed Record on Appeal.

(c) By Agreement, by Operation of Rule, or by Court Order After Appellee's Objection or Amendment.
(d) Multiple Appellants; Single Record on Appeal.
(e) Extensions of Time.

Rule 12. Filing the Record on Appeal; Docketing the Appeal; Copies 36
(a) Time for Filing Record on Appeal.
(b) Docketing the Appeal.
(c) Copies.

Rule 13. Filing and Service of Briefs 36
(a) Time for Filing and Service of Briefs.
(1) Cases Other Than Death Penalty Cases.
(2) Death Penalty Cases.
(b) Copies Reproduced by Clerk.
(c) Consequence of Failure to File and Serve Briefs.

Article III
Review by Supreme Court of Appeals Originally Docketed in the Court of Appeals—Appeals of Right; Discretionary Review

Rule 14. Appeals of Right from Court of Appeals to Supreme Court under N.C.G.S. § 7A-30 37
(a) Notice of Appeal; Filing and Service.
(b) Content of Notice of Appeal.
(1) [Reserved]
(2) Appeal Presenting Constitutional Question.
(c) Record on Appeal.
(1) Composition.
(2) Transmission; Docketing; Copies.
(d) Briefs.
(1) Filing and Service; Copies.
(2) Failure to File or Serve.

Rule 15. Discretionary Review on Certification by Supreme Court under N.C.G.S. § 7A-31 39
(a) Petition of Party.
(b) Petition of Party—Filing and Service.
(c) Petition of Party—Content.
(d) Response.

(e) Certification by Supreme Court—How Determined and Ordered.
(1) On Petition of a Party.
(2) On Initiative of the Court.
(3) Orders; Filing and Service.
(f) Record on Appeal.
(1) Composition.
(2) Filing; Copies.
(g) Filing and Service of Briefs.
(1) Cases Certified Before Determination by Court of Appeals.
(2) Cases Certified for Review of Court of Appeals Determinations.
(3) Copies.
(4) Failure to File or Serve.
(h) Discretionary Review of Interlocutory Orders.
(i) Appellant, Appellee Defined.

Rule 16. Scope of Review of Decisions of Court of Appeals 42
(a) How Determined.
(b) [Reserved]
(c) Appellant, Appellee Defined.

Rule 17. Appeal Bond in Appeals Under N.C.G.S. §§ 7A-30, 7A-31 43
(a) Appeal of Right.
(b) Discretionary Review of Court of Appeals Determination.
(c) Discretionary Review by Supreme Court Before Court of Appeals Determination.
(d) Appeals *In Forma Pauperis*.

Article IV
Direct Appeals from Administrative Tribunals to Appellate Division

Rule 18. Taking Appeal; Record on Appeal—Composition and Settlement 44
(a) General.
(b) Time and Method for Taking Appeals.
(c) Composition of Printed Record.
(d) Settling the Record on Appeal.
(1) By Agreement.
(2) By Appellee's Approval of Appellant's Proposed Record on Appeal.

(3) By Agreement, by Operation of Rule, or by Court Order After Appellee's Objection or Amendment.
(e) Further Procedures and Additional Materials in the Record on Appeal.
(f) Extensions of Time.

Rule 19. [Reserved] 49

Rule 20. Miscellaneous Provisions of Law Governing Appeals from Administrative Tribunals 49

Article V
Extraordinary Writs

Rule 21. Certiorari 50
(a) Scope of the Writ.
(1) Review of the Judgments and Orders of Trial Tribunals.
(2) Review of the Judgments and Orders of the Court of Appeals.
(b) Petition for Writ—to Which Appellate Court Addressed.
(c) Petition for Writ—Filing and Service; Content.
(d) Response; Determination by Court.
(e) Petition for Writ in Post-conviction Matters—to Which Appellate Court Addressed.
(f) Petition for Writ in Post-conviction Matters—Death Penalty Cases.

Rule 22. Mandamus and Prohibition 51
(a) Petition for Writ—to Which Appellate Court Addressed.
(b) Petition for Writ—Filing and Service; Content.
(c) Response; Determination by Court.

Rule 23. Supersedeas 52
(a) Pending Review of Trial Tribunal Judgments and Orders.
(1) Application—When Appropriate.
(2) Application—How and to Which Appellate Court Made.
(b) Pending Review by Supreme Court of Court of Appeals Decisions.
(c) Petition for Writ—Filing and Service; Content.
(d) Response; Determination by Court.
(e) Temporary Stay.

Rule 24. [Reserved] 54

Article VI
General Provisions

Rule 25. Penalties for Failure to Comply with Rules 54
(a) Failure of Appellant to Take Timely Action.
(b) Sanctions for Failure to Comply with Rules.

Rule 26. Filing and Service 55
(a) Filing.
(b) Service Required.
(c) Manner of Service.
(d) Proof of Service.
(e) Joint Appellants and Appellees.
(f) Numerous Parties to Appeal Proceeding Separately.
(g) Formatting of Documents Filed with Appellate Courts.
(1) Form of Documents.
(2) Index Required.
(3) Closing.

Rule 27. Computation and Extension of Time 57
(a) Computation of Time.
(b) Additional Time After Service.
(c) Extensions of Time; By Which Court Granted.
(1) Motions for Extension of Time in the Trial Division.
(2) Motions for Extension of Time in the Appellate Division.
(d) Motions for Extension of Time; How Determined.

Rule 28. Briefs—Function and Content 58
(a) Function.
(b) Content of Appellant's Brief.
(c) Content of Appellee's Brief; Presentation of Additional Issues.
(d) Appendixes to Briefs.
(1) When Appendixes to Appellant's Brief Are Required.
(2) When Appendixes to Appellant's Brief Are Not Required.
(3) When Appendixes to Appellee's Brief Are Required.
(4) Format of Appendixes.
(e) References in Briefs to the Record on Appeal.

(f) Joinder of Multiple Parties in Briefs.
(g) Additional Authorities.
(h) Reply Briefs.
(i) [Reserved]
(j) Word-Count Limitations Applicable to Briefs Filed in the Court of Appeals.
(1) Portions of Brief Included in Word Count.
(2) Certificate of Compliance.

Rule 28.1. Amicus Curiae 63
(a) Overview.
(b) Submitting an Amicus Brief.
(1) Motion and Brief Filed Contemporaneously.
(2) Content of Motion.
(3) Content of Brief
(4) Time for Filing
(5) Service on Parties
(6) Reply Briefs of Parties.
(c) Participating in Oral Argument.
(1) Standard.
(2) Content of Motion.
(3) Time for Filing.
(4) Service on Parties.
(d) Identification of Amicus Curiae.

Rule 29. Sessions of Courts; Calendar of Hearings 65
(a) Sessions of Court.
(1) Supreme Court.
(2) Court of Appeals.
(b) Calendaring of Cases for Hearing.

Rule 30. Oral Argument and Unpublished Opinions 66
(a) Order and Content of Argument.
(b) Time Allowed for Argument.
(1) In General.
(2) Numerous Counsel.
(c) Non-Appearance of Parties.
(d) Argument Conducted by Audio and Video Transmission.
(e) Unpublished Opinions.
(f) Decision of Appeal Without Oral Argument.

Rule 31. Petition for Rehearing 68
(a) Time for Filing; Content.
(b) How Addressed; Filed.
(c) How Determined.
(d) Procedure When Granted.
(e) Stay of Execution.
(f) Waiver by Appeal from Court of Appeals.
(g) No Petition in Criminal Cases.

Rule 31.1 Motion for En Banc Consideration by Court of Appeals 69
(a) When Hearing or Rehearing En Banc May Be Ordered.
(b) Content.
(c) Motions for Initial En Banc Hearing.
(d) Motions for En Banc Rehearing.
(e) Stay of Mandate.
(f) Rule 31.1 Motions to Be Heard First.

Rule 32. Mandates of the Courts 70
(a) In General.
(b) Time of Issuance.

Rule 33. Attorneys 71
(a) Appearances.
(b) Signatures on Electronically-Filed Documents.
(c) Agreements.
(d) Limited Practice of Out-of-State Attorneys.

Rule 33.1. Secure-Leave Periods for Attorneys 72
(a) Definition; Entitlement.
(b) Allowance.
(c) How to Submit Designation.
(d) When to Submit Designation.

Rule 34. Frivolous Appeals; Sanctions 72

Rule 35. Costs 73
(a) To Whom Allowed.
(b) Direction as to Costs in Mandate.
(c) Costs of Appeal Taxable in Trial Tribunals.
(d) Execution to Collect Costs in Appellate Courts.

Rule 36. Trial Judges Authorized to Enter Orders Under These Rules 74
(a) When Particular Judge Not Specified by Rule.
(1) Superior Court.
(2) District Court.
(b) Upon Death, Incapacity, Retirement, or Absence of Particular Judge Authorized.

Rule 37. Motions in Appellate Courts 75
(a) Time; Content of Motions; Response.
(b) Determination.
(c) Notification and Consent.
(d) Withdrawal of Appeal in Criminal Cases.
(e) Withdrawal of Appeal in Civil Cases.
(f) Effect of Withdrawal of Appeal.

Rule 38. Substitution of Parties 76
(a) Death of a Party.
(b) Substitution for Other Causes.
(c) Public Officers; Death or Separation from Office.

Rule 39. Duties of Clerks; When Offices Open 77
(a) General Provisions.
(b) Records to Be Kept.

Rule 40. Consolidation of Actions on Appeal 78

Rule 41. Appeal Information Statement 78

Rule 42. Protecting Identities—Sealed Items and Identification Numbers 78
(a) Items Sealed in the Trial Tribunal.
(b) Items Sealed by Operation of Rule.
(c) Items Sealed by the Appellate Courts.
(d) Labeling Sealed Items.
(e) Identification Numbers.

Appendixes

Appendix A: Timetables for Appeals 80

Appendix B: Format and Style 85

Appendix C: [Reserved] 90

Appendix D: Forms 91

Appendix E: Content of Briefs 99

Appendix F: Fees and Costs 105

Tables

A Publication Record of the North Carolina Rules of Appellate Procedure 106

Foreword

The last time the Supreme Court of North Carolina promulgated the Rules of Appellate Procedure as an entire rule set was on 20 December 2016. The Court's order promulgating the rules is published at 369 N.C. 763–885. This up-to-date codification incorporates the Supreme Court's amendments since the 20 December 2016 order.

The Supreme Court describes the appendixes to the Rules of Appellate Procedure as follows: "Appendixes are published with the rules for their helpfulness to the profession. Although authorized to be published for this purpose, they are not an authoritative source on parity with the rules." 369 N.C. at 764. Previous versions of this codification inadvertently omitted this commentary about the appendixes, but readers of the rules should take note of it.

Questions or feedback about this codification may be directed to rules@sc.nccourts.org.

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North Carolina Rules of Appellate Procedure

Article I
Applicability of Rules

Rule 1. Title; Scope of Rules; Trial Tribunal Defined

(a) **Title**. The title of these rules is "North Carolina Rules of Appellate Procedure." They may be so cited either in general references or in reference to particular rules. In reference to particular rules the abbreviated form of citation, "N.C. R. App. P. ___," is also appropriate.

(b) **Scope of Rules**. These rules govern procedure in all appeals from the courts of the trial division to the courts of the appellate division; in appeals in civil and criminal cases from the Court of Appeals to the Supreme Court; in direct appeals from administrative tribunals to the appellate division; and in applications to the courts of the appellate division for writs and other relief which the courts or judges thereof are empowered to give.

(c) **Rules Do Not Affect Jurisdiction**. These rules shall not be construed to extend or limit the jurisdiction of the courts of the appellate division as that is established by law.

(d) **Definition of Trial Tribunal**. As used in these rules, the term "trial tribunal" includes the superior courts, the district courts, and any administrative agencies, boards, or commissions from which appeals lie directly to the appellate division.

History Note.

287 N.C. 671; 312 N.C. 803; 324 N.C. 613; 354 N.C. 609; 363 N.C. 901; 369 N.C. 763.

Editor's Note.

Former Rule 41, "Title," was renumbered as Rule 42 on 3 March 1994, 368 N.C. 1067, and then later recodified as Rule 1(a) on 2 July 2009, 363 N.C. 901.

Rule 2. Suspension of Rules

To prevent manifest injustice to a party, or to expedite decision in the public interest, either court of the appellate division may, except as otherwise expressly provided by these rules, suspend or vary the requirements or provisions of any of these rules in a case pending before it upon application of a party or upon its own initiative, and may order proceedings in accordance with its directions.

History Note.

287 N.C. 671; 324 N.C. 613; 354 N.C. 609; 363 N.C. 901; 369 N.C. 763.

Article II

Appeals from Judgments and Orders of Superior Courts and District Courts

Rule 3. Appeal in Civil Cases—How and When Taken

(a) **Filing the Notice of Appeal**. Any party entitled by law to appeal from a judgment or order of a superior or district court rendered in a civil action or special proceeding may take appeal by filing notice of appeal with the clerk of superior court and serving copies thereof upon all other parties within the time prescribed by subsection (c) of this rule.

(b) **Special Provisions**. Appeals in the following types of cases shall be taken in the time and manner set out in the General Statutes and Rules of Appellate Procedure sections noted:

(1) Juvenile matters pursuant to N.C.G.S. § 7B-2602.

(2) Appeals pursuant to N.C.G.S. § 7B-1001 shall be subject to the provisions of Rule 3.1.

(c) **Time for Taking Appeal**. In civil actions and special proceedings, a party must file and serve a notice of appeal:

(1) within thirty days after entry of judgment if the party has been served with a copy of the judgment within the three-day period prescribed by Rule 58 of the Rules of Civil Procedure; or

(2) within thirty days after service upon the party of a copy of the judgment if service was not made within that three-day period; provided that

(3) if a timely motion is made by any party for relief under Rules 50(b), 52(b) or 59 of the Rules of Civil Procedure, the thirty-day period for taking appeal is tolled as to all parties until entry of an order disposing of the motion and then runs as to each party from the date of entry of the order or its untimely service upon the party, as provided in subdivisions (1) and (2) of this subsection (c).

In computing the time for filing a notice of appeal, the provision for additional time after service by mail in Rule 27(b) of these rules and Rule 6(e) of the Rules of Civil Procedure shall not apply.

If timely notice of appeal is filed and served by a party, any other party may file and serve a notice of appeal within ten days after the first notice of appeal was served on such party.

(d) **Content of Notice of Appeal**. The notice of appeal required to be filed and served by subsection (a) of this rule shall specify the party or parties taking the appeal; shall designate the judgment or order from which appeal is taken and the

court to which appeal is taken; and shall be signed by counsel of record for the party or parties taking the appeal, or by any such party not represented by counsel of record.

(e) **Service of Notice of Appeal**. Service of copies of the notice of appeal may be made as provided in Rule 26.

History Note.

287 N.C. 671; 368 N.C. 1067; 324 N.C. 585; 324 N.C. 613; 337 N.C. 821; 345 N.C. 765; 354 N.C. 598; 354 N.C. 609; 357 N.C. 665; 358 N.C. 829; 360 N.C. 661; 360 N.C. 820; 360 N.C. 852; 363 N.C. 901; 369 N.C. 763; 371 N.C. 974.

Rule 3.1. Review in Cases Governed by Subchapter I of the Juvenile Code

(a) **Scope**. This rule applies in appeals filed under N.C.G.S. § 7B-1001 and in cases certified for review by the appellate courts in which the right to appeal under this statute has been lost.

(b) **Filing the Notice of Appeal**. Any party entitled to an appeal under N.C.G.S. § 7B-1001(a) may take appeal by filing notice of appeal with the clerk of superior court in the time and manner set out in N.C.G.S. § 7B-1001(b) and (c) and by serving copies of the notice of appeal on all other parties.

(c) **Expediting the Delivery of the Transcript**. The clerk of superior court must complete the Expedited Juvenile Appeals Form within one business day after the notice of appeal is filed. The court reporting manager of the Administrative Office of the Courts must assign a transcriptionist for the appeal within five business days after the clerk completes the form.

The transcriptionist must produce the transcript of the entire proceedings at the State's expense if there is an order that establishes the indigency of the appellant. Otherwise, the appellant has ten days after the transcriptionist is assigned to contract for the transcription of the entire proceedings. In either situation, the transcriptionist must deliver electronically the transcript to each party to the appeal within forty days after receiving the assignment.

(d) **Expediting the Filing of the Record on Appeal**. The parties may settle the record on appeal by agreement at any time before the record on appeal is settled by any other procedure described in this subsection.

Absent agreement, the appellant must serve a proposed record on appeal on each party to the appeal within fifteen days after delivery of the transcript. Within ten days after having been served with the proposed record on appeal, the appellee may serve on each party to the appeal:

(1) a notice of approval of the proposed record on appeal;

(2) specific objections or amendments to the proposed record on appeal; or

(3) a proposed alternative record on appeal.

If the appellee serves a notice of approval, then this notice settles the record on appeal. If the appellee serves specific objections or amendments, or a proposed alternative record on appeal, then the provisions of Rule 11(c) apply. If the appellee fails to serve a notice of approval, specific objections or amendments, or a proposed alternative record on appeal, then the expiration of the ten-day period to serve one of these documents settles the record on appeal.

The appellant must file the record on appeal within five business days after the record is settled.

(e) **No-Merit Briefs**. When counsel for the appellant concludes that there is no issue of merit on which to base an argument for relief, counsel may file a no-merit brief. The appellant then may file a pro se brief within thirty days after the date of the filing of counsel's no-merit brief.

In the no-merit brief, counsel must identify any issues in the record on appeal that arguably support the appeal and must state why those issues lack merit or would not alter the ultimate result. Counsel must provide the appellant with a copy of the no-merit brief, printed record, transcripts, copies of exhibits and other items included in the record on appeal pursuant to Rule 9(d), and any supplement prepared pursuant to Rule 11(c). Counsel must inform the appellant in writing that the appellant may file a pro se brief and that the pro se brief is due within thirty days after the date of the filing of the no-merit brief. Counsel must attach evidence of this communication to the no-merit brief.

(f) [Reserved]

(g) **Motions for Extensions of Time**. Motions for extensions of time to produce and deliver the transcript, to file the record on appeal, and to file briefs are disfavored and will be allowed by the appellate courts only in extraordinary circumstances.

(h) **Duty of Trial Counsel**. Trial counsel for the appellant has a duty to assist appellate counsel with the preparation and service of appellant's proposed record on appeal.

(i) [Reserved]

(j) **Calendaring Priority**. Cases subject to this rule will be given priority over other cases being considered by the Court of Appeals and will be calendared in accordance with a schedule promulgated by the Chief Judge. Unless otherwise ordered by the Court of Appeals, cases subject to this rule shall be disposed of on the record and briefs and without oral argument.

History Note.

360 N.C. 661; 360 N.C. 820; 360 N.C. 852; 362 N.C. 699; 363 N.C. 901; 369 N.C. 763; 371 N.C. 974; 372 N.C. 902; 379 N.C. 694.

Rule 4. Appeal in Criminal Cases—How and When Taken

(a) **Manner and Time**. Any party entitled by law to appeal from a judgment or order of a superior or district court rendered in a criminal action may take appeal by:

(1) giving oral notice of appeal at trial, or

(2) filing notice of appeal with the clerk of superior court and serving copies thereof upon all adverse parties within fourteen days after entry of the judgment or order or within fourteen days after a ruling on a motion for appropriate relief made during the fourteen-day period following entry of the judgment or order. Appeals from district court to superior court are governed by N.C.G.S. §§ 15A-1431 and -1432.

(b) **Content of Notice of Appeal**. The notice of appeal required to be filed and served by subdivision (a)(2) of this rule shall specify the party or parties taking the appeal; shall designate the judgment or order from which appeal is taken and the court to which appeal is taken; and shall be signed by counsel of record for the party or parties taking the appeal, or by any such party not represented by counsel of record.

(c) **Service of Notice of Appeal**. Service of copies of the notice of appeal may be made as provided in Rule 26.

(d) **To Which Appellate Court Addressed**. An appeal of right from a judgment of a superior court by any person who has been convicted of murder in the first degree and sentenced to death shall be filed in the Supreme Court. In all other criminal cases, appeal shall be filed in the Court of Appeals.

History Note.

287 N.C. 671; 295 N.C. 742; 305 N.C. 783; 322 N.C. 844; 368 N.C. 1067; 324 N.C. 585; 324 N.C. 613; 348 N.C. 724; 354 N.C. 598; 354 N.C. 609; 357 N.C. 665; 363 N.C. 901; 369 N.C. 763; 371 N.C. 974.

Rule 5. Joinder of Parties on Appeal

(a) **Appellants**. If two or more parties are entitled to appeal from a judgment, order, or other determination and their interests are such as to make their joinder in appeal practicable, they may file and serve a joint notice of appeal in accordance with Rules 3 and 4; or they may join in appeal after having timely taken separate appeals by filing notice of joinder in the office of the clerk of superior court and serving copies thereof upon all other parties, or in a criminal case they may give a joint oral notice of appeal.

(b) **Appellees**. Two or more appellees whose interests are such as to make their joinder on appeal practicable may, by filing notice of joinder in the office of the clerk of superior court and serving copies thereof upon all other parties, so join.

(c) **Procedure after Joinder**. After joinder, the parties proceed as a single appellant or appellee. Filing and service of items by and upon joint appellants or appellees is as provided by Rule 26(e).

History Note.

287 N.C. 671; 324 N.C. 613; 354 N.C. 609; 363 N.C. 901; 369 N.C. 763; 379 N.C. 694.

Rule 6. Security for Costs on Appeal

(a) **In Regular Course**. Except in pauper appeals, an appellant in a civil action must provide adequate security for the costs of appeal in accordance with the provisions of N.C.G.S. §§ 1-285 and -286.

(b) ***In Forma Pauperis* Appeals**. A party in a civil action may be allowed to prosecute an appeal *in forma pauperis* without providing security for costs in accordance with the provisions of N.C.G.S. § 1-288.

(c) **Filed with Record on Appeal**. When security for costs is required, the appellant shall file with the record on appeal a certified copy of the appeal bond or make a monetary deposit in lieu of bond.

(d) **Dismissal for Failure to File or Defect in Security**. For failure of the appellant to provide security as required by subsection (a) or to file evidence thereof as required by subsection (c), or for a substantial defect or irregularity in any security provided, the appeal may on motion of an appellee be dismissed by the appellate court where docketed, unless for good cause shown the court permits the security to be provided or the filing to be made out of time, or the defect or irregularity to be corrected. A motion to dismiss on these grounds shall be made and determined in accordance with Rule 37. When the motion to dismiss is made on the grounds of a defect or irregularity, the appellant may as a matter of right correct the defect or irregularity by filing a proper bond or making proper deposit with the clerk of the appellate court within ten days after service of the motion upon appellant or before the case is called for argument, whichever first occurs.

(e) **No Security for Costs in Criminal Appeals**. Pursuant to N.C.G.S. § 15A-1449, no security for costs is required upon appeal of criminal cases to the appellate division.

History Note.

287 N.C. 671; 312 N.C. 803; 324 N.C. 613; 327 N.C. 671; 354 N.C. 609; 363 N.C. 901; 369 N.C. 763; 379 N.C. 694.

Rule 7. Transcripts

(a) **Scope**. This rule applies to the ordering, preparation, delivery, and filing of each transcript that is to be designated as part of the record on appeal.

(b) **Ordering by a Party**. A party may order a transcript of any proceeding that the party considers necessary for the appeal.

(1) **Transcript Contract**. A party who orders a transcript for the appeal after notice of appeal is filed or given must use an Appellate Division Transcript Contract form to order the transcript. That form is available on the Supreme Court's rules webpage.

(2) **Service of Transcript Contract**. An appellant must serve its transcript contract on each party and on the transcriptionist no later than fourteen days after filing or giving notice of appeal. An appellee must serve its transcript contract on each party and on the transcriptionist no later than twenty-eight days after any appellant files or gives notice of appeal.

(3) **Transcript Documentation**. A party who has ordered a transcript for the appeal, whether ordered before or after notice of appeal, must complete an Appellate Division Transcript Documentation form. That form is available on the Supreme Court's rules webpage.

(4) **Service of Transcript Documentation**. A party must serve the transcript documentation on all other parties within the time allowed under subsection (b)(2) of this rule for that party to serve a transcript contract.

(c) **Ordering by the Clerk of Superior Court**. If a party is indigent and entitled to appointed appellate counsel, then that party is entitled to have the clerk of superior court order a transcript on that party's behalf.

(1) **Appellate Entries**. The clerk of superior court must use an appropriate appellate entries form to order a transcript. Those forms are available on the Judicial Branch's forms webpage.

(2) **Service of Appellate Entries**. The clerk must serve the appellate entries on each party and on each transcriptionist no later than fourteen days after a judge signs the form. Service on a party who has appointed appellate counsel must be made upon that party's appointed appellate counsel.

(d) **Formatting**. The transcriptionist must format the transcript according to standards set by the Administrative Office of the Courts.

(e) **Delivery**.

(1) **Deadlines**. The transcriptionist must deliver the transcript to the parties no later than ninety days after having been served with the transcript contract or the appellate entries, except:

a. In a capitally tried case, the deadline is one hundred eighty days.

b. In an undisciplined or delinquent juvenile case under Subchapter II of Chapter 7B of the General Statutes, the deadline is sixty days.

c. In a special proceeding about the admission or discharge of clients under Article 5 of Chapter 122C of the General Statutes, the deadline is sixty days.

(2) **Certification**. The transcriptionist must certify to the parties and to the clerk of superior court that the transcript has been delivered.

(f) [Reserved]

(g) **Neutral Transcriptionist**. The transcriptionist must not have a personal or financial interest in the proceeding unless the parties otherwise agree by stipulation.

History Note.

287 N.C. 671; 295 N.C. 741; 368 N.C. 1067; 324 N.C. 585; 324 N.C. 613; 327 N.C. 671; 347 N.C. 679; 350 N.C. 857; 354 N.C. 598; 354 N.C. 609; 356 N.C. 701; 361 N.C. 732; 363 N.C. 901; 369 N.C. 763; 369 N.C. 955; 375 N.C. 1034; 379 N.C. 694.

Rule 8. Stay Pending Appeal

(a) **Stay in Civil Cases**. When appeal is taken in a civil action from a judgment, order, or other determination of a trial court, stay of execution or enforcement thereof pending disposition of the appeal must ordinarily first be sought by the deposit of security with the clerk of the superior court in those cases for which provision is made by law for the entry of stays upon deposit of adequate security, or by application to the trial court for a stay order in all other cases. After a stay order or entry has been denied or vacated by a trial court, an appellant may apply to the appropriate appellate court for a temporary stay and a writ of supersedeas in accordance with Rule 23. In any appeal which is allowed by law to be taken from an administrative tribunal to the appellate division, application for the temporary stay and writ of supersedeas may be made to the appellate court in the first instance. Application for the temporary stay and writ of supersedeas may similarly be made to the appellate court in the first instance when extraordinary circumstances make it

impracticable to obtain a stay by deposit of security or by application to the trial court for a stay order.

(b) **Stay in Criminal Cases**. When a defendant has given notice of appeal, those portions of criminal sentences which impose fines or costs are automatically stayed pursuant to the provisions of N.C.G.S. § 15A-1451. Stays of imprisonment or of the execution of death sentences must be pursued under N.C.G.S. § 15A-536 or Rule 23.

History Note.

287 N.C. 671; 312 N.C. 803; 324 N.C. 613; 345 N.C. 765; 354 N.C. 609; 363 N.C. 901; 369 N.C. 763.

Rule 9. The Record on Appeal

(a) **Function; Composition**. In appeals from the trial division of the General Court of Justice, review is solely upon the record on appeal. The components of the record on appeal include: the printed record, transcripts, exhibits and other items included in the record on appeal pursuant to Rule 9(d), any supplement prepared pursuant to Rule 11(c) or Rule 18(d)(3), and any additional materials filed pursuant to this Rule 9. Parties may cite any of these items in their briefs and arguments before the appellate courts.

(1) **Composition of the Printed Record in Civil Actions and Special Proceedings**. The printed record in civil actions and special proceedings shall contain:

a. an index of the contents of the printed record, which shall appear as the first page thereof;

b. a statement identifying the judge from whose judgment or order appeal is taken, the session at which the judgment or order was rendered, or if rendered out of session, the time and place of rendition, and the party appealing;

c. a copy of the summons with return, or of other documents showing jurisdiction of the trial court over persons or property, or a statement showing same;

d. copies of the pleadings, and of any pretrial order on which the case or any part thereof was tried;

e. so much of the litigation, set out in the form provided in Rule 9(c)(1), as is necessary for an understanding of all issues presented on appeal, or a statement specifying that the transcript of proceedings is being filed pursuant to Rule 9(c)(2), or designating portions of the transcript to be so filed;

f. where an issue presented on appeal relates to the giving or omission of instructions to the jury, a transcript of the entire charge given; and identification of the omitted instruction by setting out the requested instruction or its substance in the record on appeal immediately following the instruction given;

g. copies of the issues submitted and the verdict, or of the trial court's findings of fact and conclusions of law;

h. a copy of the judgment, order, or other determination from which appeal is taken;

i. a copy of the notice of appeal, of all orders establishing time limits relative to the perfecting of the appeal, of any order finding a party to the appeal to be a civil pauper, and of any agreement, notice of approval, or order settling the record on appeal and settling the transcript of proceedings if one is filed pursuant to Rule 9(c)(2) and (3);

j. copies of all other documents filed and statements of all other proceedings had in the trial court which are necessary to an understanding of all issues presented on appeal unless they appear in another component of the record on appeal;

k. proposed issues on appeal set out in the manner provided in Rule 10;

l. a statement, where appropriate, that the record of proceedings was made with an electronic recording device;

m. a statement, where appropriate, that a supplement compiled pursuant to Rule 11(c) is being filed separately;

n. any order (issued prior to the filing of the record on appeal) ruling upon a motion by an attorney who is not licensed to practice law in North Carolina to be admitted pursuant to N.C.G.S. § 84-4.1 to appear in the appeal. In the event such a motion is filed prior to the filing of the printed record but has not yet been ruled upon when the printed record is filed, the printed record shall include a statement that such a motion is pending and the date that motion was filed;

o. a statement, where appropriate, that copies of exhibits, copies of other items, or both have been included in the record on appeal pursuant to Rule 9(d) and are being filed separately; and

p. a brief description of each original exhibit and other original item that has been included in the record on appeal pursuant to Rule 9(d).

(2) **Composition of the Printed Record in Appeals from Superior Court Review of Administrative Boards and Agencies**. The printed record in cases of appeal from judgments of the superior court rendered upon review of the proceedings of administrative boards or agencies, other than those specified in Rule 18(a), shall contain:

a. an index of the contents of the printed record, which shall appear as the first page thereof;

b. a statement identifying the judge from whose judgment or order appeal is taken, the session at which the judgment or order was rendered, or if rendered out of session, the time and place of rendition, and the party appealing;

c. a copy of the summons, notice of hearing, or other documents showing jurisdiction of the board or agency over persons or property sought to be bound in the proceeding, or a statement showing same;

d. copies of all petitions and other pleadings filed in the superior court;

e. copies of all items properly before the superior court as are necessary for an understanding of all issues presented on appeal unless they appear in another component of the record on appeal;

f. so much of the litigation in the superior court, set out in the form provided in Rule 9(c)(1), as is necessary for an understanding of all issues presented, or a statement specifying that the transcript of proceedings is being filed pursuant to Rule 9(c)(2), or designating portions of the transcript to be so filed;

g. a copy of any findings of fact and conclusions of law and of the judgment, order, or other determination of the superior court from which appeal is taken;

h. a copy of the notice of appeal from the superior court, of all orders establishing time limits relative to the perfecting of the appeal, of any order finding a party to the appeal to be a civil pauper, and of any agreement, notice of approval, or order settling the record on appeal and settling the transcript of proceedings, if one is filed pursuant to Rule 9(c)(2) and (3);

i. proposed issues on appeal relating to the actions of the superior court, set out in the manner provided in Rule 10;

j. any order (issued prior to the filing of the record on appeal) ruling upon any motion by an attorney who is not licensed to practice law in North Carolina to be admitted pursuant to N.C.G.S. § 84-4.1 to appear in the appeal. In the event such a motion is filed prior to the filing of the printed record but has not yet been ruled upon when the printed record is filed, the printed record shall include a statement that such a motion is pending and the date that motion was filed;

k. a statement, where appropriate, that a supplement compiled pursuant to Rule 11(c) is being filed separately;

l. a statement, where appropriate, that copies of exhibits, copies of other items, or both have been included in the record on appeal pursuant to Rule 9(d) and are being filed separately; and

m. a brief description of each original exhibit and other original item that has been included in the record on appeal pursuant to Rule 9(d).

(3) **Composition of the Printed Record in Criminal Actions**. The printed record in criminal actions shall contain:

a. an index of the contents of the printed record, which shall appear as the first page thereof;

b. a statement identifying the judge from whose judgment or order appeal is taken, the session at which the judgment or order was rendered, or if rendered out of session, the time and place of rendition, and the party appealing;

c. copies of all warrants, informations, presentments, and indictments upon which the case has been tried in any court;

d. copies of docket entries or a statement showing all arraignments and pleas;

e. so much of the litigation, set out in the form provided in Rule 9(c)(1), as is necessary for an understanding of all issues presented on appeal, or a statement specifying that the entire transcript of the proceedings is being filed pursuant to Rule 9(c)(2), or designating portions of the transcript to be so filed;

f. where an issue presented on appeal relates to the giving or omission of instructions to the jury, a transcript of the

entire charge given; and identification of the omitted instruction by setting out the requested instruction or its substance in the printed record immediately following the instruction given;

g. copies of the verdict and of the judgment, order, or other determination from which appeal is taken; and in capitally tried cases, a copy of the jury verdict sheet for sentencing, showing the aggravating and mitigating circumstances submitted and found or not found;

h. a copy of the notice of appeal or an appropriate entry or statement showing appeal taken orally; of all orders establishing time limits relative to the perfecting of the appeal; of any order finding defendant indigent for the purposes of the appeal and assigning counsel; and of any agreement, notice of approval, or order settling the record on appeal and settling the transcript of proceedings, if one is to be filed pursuant to Rule 9(c)(2);

i. copies of all other documents filed and statements of all other proceedings had in the trial courts which are necessary for an understanding of all issues presented on appeal unless they appear in another component of the record on appeal;

j. proposed issues on appeal set out in the manner provided in Rule 10;

k. a statement, where appropriate, that the record of proceedings was made with an electronic recording device;

l. a statement, where appropriate, that a supplement compiled pursuant to Rule 11(c) is being filed separately;

m. any order (issued prior to the filing of the record on appeal) ruling upon any motion by an attorney who is not licensed to practice law in North Carolina to be admitted pursuant to N.C.G.S. § 84-4.1 to appear in the appeal. In the event such a motion is filed prior to the filing of the printed record but has not yet been ruled upon when the printed record is filed, the printed record shall include a statement that such a motion is pending and the date that motion was filed;

n. a statement, where appropriate, that copies of exhibits, copies of other items, or both have been included in the record on appeal pursuant to Rule 9(d) and are being filed separately; and

o. a brief description of each original exhibit and other original item that has been included in the record on appeal pursuant to Rule 9(d).

(b) **Form of Printed Record; Amendments**. The printed record shall be in the format prescribed by Rule 26(g) and the appendixes to these rules.

(1) **Order of Arrangement**. The items constituting the printed record should be arranged, so far as practicable, in the order in which they occurred or were filed in the trial tribunal.

(2) **Inclusion of Unnecessary Matter; Penalty**. It shall be the duty of counsel for all parties to an appeal to avoid including in the printed record matter not necessary for an understanding of the issues presented on appeal. The cost of including such matter may be charged as costs to the party or counsel who caused or permitted its inclusion.

(3) **Filing Dates and Signatures on Documents**. Every pleading, motion, affidavit, or other document included in the printed record should show the date on which it was filed and, if verified, the date of verification and the person who verified it. Every judgment, order, or other determination should show the date on which it was entered.

(4) **Pagination; Counsel Identified**. The pages of the printed record shall be numbered consecutively, be referred to as "record pages," and be cited as "(R p ___)." Pages of the Rule 11(c) or Rule 18(d)(3) supplement shall be numbered consecutively with the pages of the printed record, the first page of the record supplement to bear the next consecutive number following the number of the last page of the printed record. These pages shall be referred to as "record supplement pages" and be cited as "(R S p ___)." Pages of the transcript of proceedings filed under Rule 9(c)(2) shall be referred to as "transcript pages" and be cited as "(T p ___)." At the end of the printed record shall appear the names, office addresses, telephone numbers, State Bar numbers, and e-mail addresses of counsel of record for all parties to the appeal.

(5) **Additions and Amendments to Record on Appeal**.

a. **Additional Materials in the Record on Appeal**. If the record on appeal as settled is insufficient to respond to the issues presented in an appellant's brief or the issues presented in an appellee's brief pursuant to Rule 10(c), the responding party may supplement the record on appeal with any items that could otherwise have been included pursuant to this Rule 9. The responding party shall serve

a copy of those items on opposing counsel and shall file the items in a volume captioned "Rule 9(b)(5) Supplement." The supplement shall be filed no later than the responsive brief or within the time allowed for filing such a brief if none is filed.

b. **Motions Pertaining to Additions to the Record on Appeal**. On motion of any party or on its own initiative, the appellate court may order additional portions of a trial court record or transcript sent up and added to the record on appeal. On motion of any party, the appellate court may order any portion of the record on appeal amended to correct error shown as to form or content. Prior to the filing of the record on appeal in the appellate court, such motions may be filed by any party in the trial court.

(c) **Presentation of Testimonial Evidence and Other Proceedings**. Testimonial evidence, voir dire, statements and events at evidentiary and non-evidentiary hearings, and other trial proceedings necessary to be presented for review by the appellate court may be included either in the printed record in the form specified in Rule 9(c)(1) or by designating the transcript of proceedings of the trial tribunal as provided in Rule 9(c)(2) and (3). When an issue presented on appeal relates to the giving or omission of instructions to the jury, a transcript of the entire charge given shall be included in the printed record.

(1) **When Testimonial Evidence, Voir Dire, Statements and Events at Evidentiary and Non-Evidentiary Hearings, and Other Trial Proceedings Narrated—How Set Out in Printed Record**. When an issue is presented on appeal with respect to the admission or exclusion of evidence, the question and answer form shall be utilized in setting out the pertinent questions and answers. Other testimonial evidence, voir dire, statements and events at evidentiary and non-evidentiary hearings, and other trial proceedings required by Rule 9(a) to be included in the printed record shall be set out in narrative form except where such form might not fairly reflect the true sense of the evidence received, in which case it may be set out in question and answer form. Parties shall use that form or combination of forms best calculated under the circumstances to present the true sense of the required testimonial evidence concisely and at a minimum of expense to the litigants. Parties may object to particular narration on the basis that it does not accurately reflect the true sense of testimony received, statements made, or events that occurred; or to particular questions and answers on the basis that the testimony might with no substantial loss in accuracy be summarized in narrative form at substantially less

expense. When a judge or referee is required to settle the record on appeal under Rule 11(c) and there is dispute as to the form, the judge or referee shall settle the form in the course of settling the record on appeal.

(2) **Designation that Transcript of Proceedings in Trial Tribunal Will Be Used**. Appellant may designate in the printed record that the testimonial evidence will be presented in the transcript of the evidence of the trial tribunal in lieu of narrating the evidence and other trial proceedings as permitted by Rule 9(c)(1). When a transcript of those proceedings has been made, appellant may also designate that the transcript will be used to present voir dire, statements and events at evidentiary and non-evidentiary hearings, or other trial proceedings when those proceedings are the basis for one or more issues presented on appeal. Any such designation shall refer to the page numbers of the transcript being designated. Appellant need not designate all of the transcript that has been made, provided that when the transcript is designated to show the testimonial evidence, so much of the testimonial evidence must be designated as is necessary for an understanding of all issues presented on appeal. When appellant has narrated the evidence and other trial proceedings under Rule 9(c)(1), the appellee may designate the transcript as a proposed alternative record on appeal.

(3) **Transcript of Proceedings—Settlement, Filing, Notice, Briefs**. Whenever a transcript is designated to be used pursuant to Rule 9(c)(2):

a. it shall be settled, together with the other components of the record on appeal, according to the procedures established by Rule 11;

b. appellant shall file the transcript pursuant to Rule 12 with the clerk of the appellate court in which the appeal has been docketed;

c. in criminal appeals, upon settlement of the record on appeal, the district attorney shall notify the Attorney General of North Carolina that the record on appeal has been settled; and

d. the briefs of the parties must comport with the requirements of Rule 28 regarding complete statement of the facts of the case and regarding appendixes to the briefs.

(4) **Presentation of Discovery Materials**. Discovery materials offered into evidence at trial shall be brought forward, if relevant, as other evidence. In all instances in which discovery materials

are considered by the trial tribunal, other than as evidence offered at trial, the following procedures for presenting those materials to the appellate court shall be used: Depositions shall be treated as testimonial evidence and shall be presented by narration or by transcript of the deposition in the manner prescribed by this Rule 9(c). Other discovery materials, including interrogatories and answers, requests for admission, responses to requests, motions to produce, and the like, pertinent to issues presented on appeal, may be set out in the printed record or may be sent up in accordance with Rule 9(d).

(5) **Electronic Recordings**. When a narrative or transcript has been produced from an electronic recording, the parties shall not file a copy of the electronic recording with the appellate division except at the direction or with the approval of the appellate court.

(d) **Exhibits and Other Items**. Exhibits and other items that have been filed, served, submitted for consideration, admitted, or made the subject of an offer of proof may be included in the record on appeal under this subsection if a party believes that they are necessary to understand an issue on appeal. To the extent practicable, the parties should include copies of exhibits and copies of other items in the record on appeal rather than originals.

(1) **Copies**. Copies of exhibits and other items that are letter size documents may be included in the printed record or may be grouped together and presented to the appellate court in one or more separate Rule 9(d) volumes. Each separate volume must be paginated and indexed, and it must display at the top of the first page this notice: "Rule 9(d) Copies of Exhibits and Other Items." Copies of exhibits and other items that are oversized documents or non-documentary items may be presented to the appellate court individually but must be labeled as a copy.

(2) **Originals**. Original exhibits and other original items that have been settled as part of the record on appeal may be relied on by the parties in their briefs and arguments, but they may not be delivered to the appellate court without the appellate court's permission.

a. **Delivering Originals to the Appellate Court**. If a party believes that the appellate court should examine an original exhibit or other original item, then that party must file a motion with the appellate court that asks for permission to deliver the original exhibit or other original item. The movant must explain the relevance of the original exhibit or other original item to the appeal and identify its custodian. If the appellate court allows the

motion, then the custodian must promptly deliver the original exhibit or other original item to the clerk of the appellate court in a manner that ensures its security and availability for use in further trial proceedings. If the custodian is not a party, then the clerk of the appellate court must send the appellate court's order allowing the motion to the custodian. The clerk of the appellate court will add the original exhibit or other original item to the case file when the appellate court receives it. Nothing in this subsection precludes the appellate court from ordering the delivery of an original exhibit on its own initiative.

b. **Removing Originals from the Appellate Court**. A custodian who has delivered an original exhibit or other original item to the appellate court must remove it at the direction of the clerk of the appellate court. If the custodian does not remove the original exhibit or other original item as directed, then the clerk of the appellate court may dispose of it.

History Note.

287 N.C. 671; 303 N.C. 715; 304 N.C. 737; 312 N.C. 803; 368 N.C. 1067; 324 N.C. 585; 324 N.C. 613; 327 N.C. 671; 345 N.C. 765; 347 N.C. 679; 354 N.C. 598; 354 N.C. 609; 358 N.C. 831; 361 N.C. 732; 363 N.C. 901; 365 N.C. 583; 369 N.C. 763; 371 N.C. 974; 375 N.C. 1034; 379 N.C. 694.

Rule 10. Preservation of Issues at Trial; Proposed Issues on Appeal

(a) **Preserving Issues During Trial Proceedings**.

(1) **General**. In order to preserve an issue for appellate review, a party must have presented to the trial court a timely request, objection, or motion, stating the specific grounds for the ruling the party desired the court to make if the specific grounds were not apparent from the context. It is also necessary for the complaining party to obtain a ruling upon the party's request, objection, or motion. Any such issue that was properly preserved for review by action of counsel taken during the course of proceedings in the trial tribunal by objection noted or which by rule or law was deemed preserved or taken without any such action, including, but not limited to, whether the judgment is supported by the verdict or by the findings of fact and conclusions of law, whether the court had jurisdiction over the subject matter, and whether a criminal charge is sufficient in law, may be made the basis of an issue presented on appeal.

(2) **Jury Instructions**. A party may not make any portion of the jury charge or omission therefrom the basis of an issue presented on appeal unless the party objects thereto before the jury retires to consider its verdict, stating distinctly that to which objection is made and the grounds of the objection; provided that opportunity was given to the party to make the objection out of the hearing of the jury, and, on request of any party, out of the presence of the jury.

(3) **Sufficiency of the Evidence**. In a criminal case, a defendant may not make insufficiency of the evidence to prove the crime charged the basis of an issue presented on appeal unless a motion to dismiss the action, or for judgment as in case of nonsuit, is made at trial. If a defendant makes such a motion after the State has presented all its evidence and has rested its case and that motion is denied and the defendant then introduces evidence, defendant's motion for dismissal or judgment in case of nonsuit made at the close of State's evidence is waived. Such a waiver precludes the defendant from urging the denial of such motion as a ground for appeal.

A defendant may make a motion to dismiss the action, or for judgment as in case of nonsuit, at the conclusion of all the evidence, irrespective of whether defendant made an earlier such motion. If the motion at the close of all the evidence is denied, the defendant may urge as ground for appeal the denial of the motion made at the conclusion of all the evidence. However, if a defendant fails to move to dismiss the action, or for judgment as in case of nonsuit, at the close of all the evidence, defendant may not challenge on appeal the sufficiency of the evidence to prove the crime charged.

If a defendant's motion to dismiss the action, or for judgment as in case of nonsuit, is allowed, or shall be sustained on appeal, it shall have the force and effect of a verdict of "not guilty" as to such defendant.

(4) **Plain Error**. In criminal cases, an issue that was not preserved by objection noted at trial and that is not deemed preserved by rule or law without any such action nevertheless may be made the basis of an issue presented on appeal when the judicial action questioned is specifically and distinctly contended to amount to plain error.

(b) **Appellant's Proposed Issues on Appeal**. Proposed issues that the appellant intends to present on appeal shall be stated without argument at the conclusion of the printed record in a numbered list. Proposed issues on appeal are to

facilitate the preparation of the record on appeal and shall not limit the scope of the issues presented on appeal in an appellant's brief.

(c) **Appellee's Proposed Issues on Appeal as to an Alternative Basis in Law**. Without taking an appeal, an appellee may list proposed issues on appeal in the printed record based on any action or omission of the trial court that was properly preserved for appellate review and that deprived the appellee of an alternative basis in law for supporting the judgment, order, or other determination from which appeal has been taken. An appellee's list of proposed issues on appeal shall not preclude an appellee from presenting arguments on other issues in its brief. Portions of the record or transcript of proceedings necessary to an understanding of such proposed issues on appeal as to an alternative basis in law may be included in the record on appeal by agreement of the parties under Rule 11(a), may be included by the appellee in a proposed alternative record on appeal under Rule 11(b), or may be designated for inclusion in the transcript of proceedings, if one is filed under Rule 9(c)(2).

History Note.

287 N.C. 671; 303 N.C. 716; 309 N.C. 831; 312 N.C. 803; 368 N.C. 1067; 324 N.C. 613; 354 N.C. 609; 363 N.C. 901; 369 N.C. 763; 375 N.C. 1034; 379 N.C. 694.

Rule 11. Settling the Record on Appeal

(a) **By Agreement**. Within forty-five days after all of the transcripts that have been ordered according to Rule 7 are delivered (seventy days in capitally tried cases) or forty-five days after the last notice of appeal is filed or given, whichever is later, the parties may by agreement entered in the printed record settle a proposed record on appeal that has been prepared by any party in accordance with Rule 9 as the record on appeal.

(b) **By Appellee's Approval of Appellant's Proposed Record on Appeal**. If the record on appeal is not settled by agreement under Rule 11(a), the appellant shall, within the same times provided, serve upon all other parties a proposed record on appeal constituted in accordance with the provisions of Rule 9. Within thirty days (thirty-five days in capitally tried cases) after service of the proposed record on appeal upon an appellee, that appellee may serve upon all other parties a notice of approval of the proposed record on appeal, or objections, amendments, or a proposed alternative record on appeal in accordance with Rule 11(c). If all appellees within the times allowed them either serve notices of approval or fail to serve either notices of approval or objections, amendments, or proposed alternative records on appeal, appellant's proposed record on appeal thereupon constitutes the record on appeal.

(c) **By Agreement, by Operation of Rule, or by Court Order After Appellee's Objection or Amendment**. Within thirty days (thirty-five days in capitally tried cases) after service upon appellee of appellant's proposed record on

appeal, that appellee may serve upon all other parties specific amendments or objections to the proposed record on appeal, or a proposed alternative record on appeal. Amendments or objections to the proposed record on appeal shall be set out in a separate document and shall specify any item(s) for which an objection is based on the contention that the item was not filed, served, submitted for consideration, admitted, or made the subject of an offer of proof, or that the content of a statement or narration is factually inaccurate. An appellant who objects to an appellee's response to the proposed record on appeal shall make the same specification in its request for judicial settlement. The formatting of the record on appeal and the order in which items appear in it are the responsibility of the appellant.

If any appellee timely serves amendments, objections, or a proposed alternative record on appeal, the record on appeal shall include each item that is either among those items required by Rule 9(a) or that is requested by any party to the appeal and agreed upon for inclusion by all other parties to the appeal. Additionally, if a party requests that an item be included in the record on appeal but not all other parties to the appeal agree to its inclusion, then that item shall be filed by the appellant in a volume captioned "Rule 11(c) Supplement"; provided that any item not filed, served, submitted for consideration, or admitted, or for which no offer of proof was tendered, shall not be included in the record on appeal. Subject to the additional requirements of Rule 28(d), items in the Rule 11(c) supplement may be cited and used by the parties like any other component of the record on appeal.

If a party does not agree to the wording of a statement or narration required or permitted by these rules, there shall be no judicial settlement to resolve the dispute unless the objection is based on a contention that the statement or narration concerns an item that was not filed, served, submitted for consideration, admitted, or tendered in an offer of proof, or that a statement or narration is factually inaccurate. Instead, the objecting party is permitted to have inserted in the settled record on appeal a concise counter-statement. Parties are strongly encouraged to reach agreement on the wording of statements in records on appeal. Judicial settlement is not appropriate for disputes that concern only the formatting of a record on appeal or the order in which items appear in a record on appeal.

The Rule 11(c) supplement shall contain an index of the contents of the supplement, which shall appear as the first page thereof. The Rule 11(c) supplement shall be paginated as required by Rule 9(b)(4) and the contents should be arranged, so far as practicable, in the order in which they occurred or were filed in the trial tribunal. If a party does not agree to the inclusion or specification of an exhibit or transcript in the printed record, the printed record shall include a statement that such items are separately filed along with the supplement.

If any party to the appeal contends that materials proposed for inclusion in the record or for filing therewith pursuant to these rules were not filed, served, submitted for consideration, admitted, or made the subject of an offer of proof, or that a statement or narration permitted by these rules is not factually accurate, then that party, within ten days after expiration of the time within which the appellee last

served with the appellant's proposed record on appeal might have served amendments, objections, or a proposed alternative record on appeal, may in writing request that the judge from whose judgment, order, or other determination appeal was taken settle the record on appeal. A copy of the request, endorsed with a certificate showing service on the judge, shall be filed forthwith in the office of the clerk of the superior court and served upon all other parties. Each party shall promptly provide to the judge a reference copy of the record items, amendments, or objections served by that party in the case.

The functions of the judge in the settlement of the record on appeal are to determine whether a statement permitted by these rules is not factually accurate, to settle narrations of proceedings under Rule 9(c)(1), and to determine whether the record accurately reflects material filed, served, submitted for consideration, admitted, or made the subject of an offer of proof, but not to decide whether material desired in the record by either party is relevant to the issues on appeal, non-duplicative, or otherwise suited for inclusion in the record on appeal.

The judge shall send written notice to counsel for all parties setting a place and a time for a hearing to settle the record on appeal. The hearing shall be held not later than fifteen days after service of the request for hearing upon the judge. The judge shall settle the record on appeal by order entered not more than twenty days after service of the request for hearing upon the judge. If requested, the judge shall return the record items submitted for reference during the judicial-settlement process with the order settling the record on appeal.

If any appellee timely serves amendments, objections, or a proposed alternative record on appeal, and no judicial settlement of the record is timely sought, the record is deemed settled as of the expiration of the ten-day period within which any party could have requested judicial settlement of the record on appeal under this Rule 11(c).

Provided that, nothing herein shall prevent settlement of the record on appeal by agreement of the parties at any time within the times herein limited for settling the record by judicial order.

(d) **Multiple Appellants; Single Record on Appeal**. When there are multiple appellants (two or more), whether proceeding separately or jointly, as parties aligned in interest, or as cross-appellants, there shall nevertheless be but one record on appeal. The proposed issues on appeal of the several appellants shall be set out separately in the single record on appeal and attributed to the several appellants by any clear means of reference. In the event multiple appellants cannot agree to the procedure for constituting a proposed record on appeal, the judge from whose judgment, order, or other determination the appeals are taken shall, on motion of any appellant with notice to all other appellants, enter an order settling the procedure, including the allocation of costs.

(e) **Extensions of Time**. The times provided in this rule for taking any action may be extended in accordance with the provisions of Rule 27(c).

History Note.

287 N.C. 671; 312 N.C. 803; 368 N.C. 1067; 324 N.C. 613; 327 N.C. 671; 345 N.C. 765; 347 N.C. 679; 354 N.C. 609; 358 N.C. 834; 361 N.C. 732; 363 N.C. 901; 369 N.C. 763; 371 N.C. 974; 375 N.C. 1034; 379 N.C. 694.

Rule 12. Filing the Record on Appeal; Docketing the Appeal; Copies

(a) **Time for Filing Record on Appeal**. The appellant must file the record on appeal no later than fifteen days after it has been settled by any of the procedures provided in Rule 11 or Rule 18. This deadline applies only to the printed record, transcripts, copies of exhibits and other items included in the record on appeal pursuant to Rule 9(d), and any supplement prepared pursuant to Rule 11(c) or Rule 18(d)(3). This deadline does not apply to original exhibits and other original items included in the record on appeal, which are subject to the delivery and removal procedures in Rule 9(d)(2).

(b) **Docketing the Appeal**. The appellant shall pay to the clerk the docket fee fixed pursuant to N.C.G.S. § 7A-20(b), and the clerk shall thereupon enter the appeal upon the docket of the appellate court. If an appellant is authorized to appeal *in forma pauperis* as provided in N.C.G.S. §§ 1-288 or 7A-450 et seq., the clerk shall docket the appeal upon timely filing of the record on appeal. An appeal is docketed under the title given to the action in the trial division, with the appellant identified as such. The clerk shall forthwith give notice to all parties of the date on which the appeal was docketed in the appellate court.

(c) **Copies**. The clerk will reproduce and distribute copies of the printed record as directed by the court, billing the parties pursuant to these rules.

History Note.

287 N.C. 671; 312 N.C. 803; 368 N.C. 1067; 324 N.C. 613; 345 N.C. 765; 354 N.C. 609; 357 N.C. 665; 361 N.C. 732; 363 N.C. 901; 369 N.C. 763; 371 N.C. 974; 375 N.C. 1034; 379 N.C. 694.

Rule 13. Filing and Service of Briefs

(a) **Time for Filing and Service of Briefs**.

(1) **Cases Other Than Death Penalty Cases**. Within thirty days after the record on appeal has been filed with the appellate court, the appellant shall file a brief in the office of the clerk of the appellate court and serve copies thereof upon all other parties separately represented. Within thirty days after appellant's brief has been served on an appellee, the appellee shall similarly file and serve copies of a brief. An appellant may file and serve a reply brief as provided in Rule 28(h).

(2) **Death Penalty Cases**. Within sixty days after the record on appeal has been filed with the Supreme Court, the appellant in a criminal appeal which includes a sentence of death shall file a brief in the office of the clerk and serve copies thereof upon all other parties separately represented. Within sixty days after appellant's brief has been served, the appellee shall similarly file and serve copies of a brief. An appellant may file and serve a reply brief as provided in Rule 28(h).

(b) **Copies Reproduced by Clerk**. A party may be required to pay to the clerk of the appellate court a deposit fixed by the clerk to cover the cost of reproducing copies of the party's brief. The clerk will reproduce and distribute copies of briefs as directed by the court.

(c) **Consequence of Failure to File and Serve Briefs**. If an appellant fails to file and serve a brief within the time allowed, the appeal may be dismissed on motion of an appellee or on the court's own initiative. If an appellee fails to file and serve its brief within the time allowed, the appellee may not be heard in oral argument except by permission of the court.

History Note.

287 N.C. 671; 301 N.C. 731; 312 N.C. 803; 322 N.C. 850; 324 N.C. 585; 324 N.C. 613; 354 N.C. 609; 357 N.C. 665; 359 N.C. 883; 363 N.C. 901; 365 N.C. 583; 369 N.C. 763; 371 N.C. 974; 379 N.C. 694.

Article III
Review by Supreme Court of Appeals Originally Docketed in the Court of Appeals—Appeals of Right; Discretionary Review

Rule 14. Appeals of Right from Court of Appeals to Supreme Court under N.C.G.S. § 7A-30

(a) **Notice of Appeal; Filing and Service**. Appeals of right from the Court of Appeals to the Supreme Court are taken by filing notices of appeal with the clerk of the Court of Appeals and with the clerk of the Supreme Court and serving notice of appeal upon all other parties within fifteen days after the mandate of the Court of Appeals has been issued to the trial tribunal. For cases which arise from the Industrial Commission, a copy of the notice of appeal shall also be served on the Chair of the Industrial Commission. The running of the time for filing and serving a notice of appeal is tolled as to all parties by the filing by any party within such time of a petition for rehearing under Rule 31 of these rules, and the full time for appeal thereafter commences to run and is computed as to all parties from the date of entry by the Court of Appeals of an order denying the petition for rehearing. If a timely notice of appeal is filed by a party, any other party may file a notice of appeal within

ten days after the first notice of appeal was filed. A petition prepared in accordance with Rule 15(c) for discretionary review in the event the appeal is determined not to be of right or for issues in addition to those set out in the notice of appeal may be filed with or contained in the notice of appeal.

(b) **Content of Notice of Appeal**.

(1) [Reserved]

(2) **Appeal Presenting Constitutional Question**. In an appeal which is asserted by the appellant to involve a substantial constitutional question, the notice of appeal shall specify the party or parties taking the appeal; shall designate the judgment of the Court of Appeals from which the appeal is taken; shall state the issue or issues which are the basis of the constitutional claim and which are to be presented to the Supreme Court for review; shall specify the articles and sections of the Constitution asserted to be involved; shall state with particularity how appellant's rights thereunder have been violated; and shall affirmatively state that the constitutional issue was timely raised (in the trial tribunal if it could have been, in the Court of Appeals if not) and either not determined or determined erroneously.

(c) **Record on Appeal**.

(1) **Composition**. The record on appeal filed in the Court of Appeals constitutes the record on appeal for review by the Supreme Court. However, the Supreme Court may note de novo any deficiencies in the record on appeal and may take such action in respect thereto as it deems appropriate, including dismissal of the appeal.

(2) **Transmission; Docketing; Copies**. Upon the filing of a notice of appeal, the clerk of the Court of Appeals will forthwith transmit the original record on appeal to the clerk of the Supreme Court, who shall thereupon file the record and docket the appeal. The clerk of the Supreme Court will procure or reproduce copies of the record on appeal for distribution as directed by the Court, and may require a deposit from appellant to cover the cost of reproduction.

(d) **Briefs**.

(1) **Filing and Service; Copies**. In an appeal based upon the existence of a substantial constitutional question, the appellant shall file and serve a new brief within thirty days after entry of the order of the Supreme Court which determines for the purpose of retaining the appeal on the docket that a substantial constitutional question does exist. Within thirty days after service of the appellant's brief upon appellee, the appellee shall

similarly file and serve copies of a new brief. An appellant may file and serve a reply brief as provided in Rule 28(h).

The clerk will reproduce and distribute copies of the briefs as directed by the Court, billing the parties pursuant to these rules.

(2) **Failure to File or Serve**. If an appellant fails to file or serve its brief within the time allowed, the appeal may be dismissed on motion of an appellee or on the Court's own initiative. If an appellee fails to file and serve its brief within the time allowed, it may not be heard in oral argument except by permission of the Court.

History Note.

287 N.C. 671; 291 N.C. 721; 301 N.C. 731; 312 N.C. 803; 322 N.C. 850; 324 N.C. 585; 324 N.C. 613; 345 N.C. 765; 354 N.C. 609; 357 N.C. 665; 359 N.C. 883; 363 N.C. 901; 365 N.C. 583; 369 N.C. 763; 379 N.C. 694; Order Dated 19 March 2025.

Rule 15. Discretionary Review on Certification by Supreme Court under N.C.G.S. § 7A-31

(a) **Petition of Party**. Either prior to or following determination by the Court of Appeals of an appeal docketed in that court, any party to the appeal may in writing petition the Supreme Court upon any grounds specified in N.C.G.S. § 7A-31 to certify the cause for discretionary review by the Supreme Court; except that a petition for discretionary review of an appeal from the Industrial Commission, the North Carolina State Bar, the Property Tax Commission, the Board of State Contract Appeals, or the Commissioner of Insurance may only be made following determination by the Court of Appeals; and except that no petition for discretionary review may be filed in any post-conviction proceeding under Article 89 of Chapter 15A of the General Statutes, or in valuation of exempt property under Chapter 1C of the General Statutes.

(b) **Petition of Party—Filing and Service**. A petition for review prior to determination by the Court of Appeals shall be filed with the clerk of the Supreme Court and served on all other parties within fifteen days after the appeal is docketed in the Court of Appeals. For cases that arise from the Industrial Commission, a copy of the petition shall be served on the Chair of the Industrial Commission. A petition for review following determination by the Court of Appeals shall be similarly filed and served within fifteen days after the mandate of the Court of Appeals has been issued to the trial tribunal. Such a petition may be contained in or filed with a notice of appeal of right, to be considered by the Supreme Court in the event the appeal is determined not to be of right or for issues in addition to those set out in the notice of appeal, as provided in Rule 14(a). The running of the time for filing and serving a petition for review following determination by the Court of Appeals is terminated as

to all parties by the filing by any party within such time of a petition for rehearing under Rule 31 of these rules, and the full time for filing and serving such a petition for review thereafter commences to run and is computed as to all parties from the date of entry by the Court of Appeals of an order denying the petition for rehearing. If a timely petition for review is filed by a party, any other party may file a petition for review within ten days after the first petition for review was filed.

(c) **Petition of Party—Content**. The petition shall designate the petitioner or petitioners and shall set forth plainly and concisely the factual and legal basis upon which it is asserted that grounds exist under N.C.G.S. § 7A-31 for discretionary review. The petition shall state each issue for which review is sought and shall be accompanied by a copy of the opinion of the Court of Appeals when filed after determination by that court. No supporting brief is required, but supporting authorities may be set forth briefly in the petition.

(d) **Response**. A response to the petition may be filed by any other party within ten days after service of the petition upon that party. No supporting brief is required, but supporting authorities may be set forth briefly in the response. If, in the event that the Supreme Court certifies the case for review, the respondent would seek to present issues in addition to those presented by the petitioner, those additional issues shall be stated in the response. A motion for extension of time is not permitted.

(e) **Certification by Supreme Court—How Determined and Ordered**.

(1) **On Petition of a Party**. The determination by the Supreme Court whether to certify for review upon petition of a party is made solely upon the petition, any response thereto, and any briefs filed under Rule 28.1, and is made without oral argument.

(2) **On Initiative of the Court**. The determination by the Supreme Court whether to certify for review upon its own initiative pursuant to N.C.G.S. § 7A-31 is made without prior notice to the parties and without oral argument.

(3) **Orders; Filing and Service**. Any determination to certify for review and any determination not to certify made in response to a petition will be recorded by the Supreme Court in a written order. The clerk of the Supreme Court will forthwith enter such order, deliver a copy thereof to the clerk of the Court of Appeals, and mail copies to all parties. The cause is docketed in the Supreme Court upon entry of an order of certification by the clerk of the Supreme Court.

(f) **Record on Appeal**.

(1) **Composition**. The record on appeal filed in the Court of Appeals constitutes the record on appeal for review by the Supreme Court.

However, the Supreme Court may note de novo any deficiencies in the record on appeal and may take such action in respect thereto as it deems appropriate, including dismissal of the appeal.

(2) **Filing; Copies**. When an order of certification is filed with the clerk of the Court of Appeals, he or she will forthwith transmit the original record on appeal to the clerk of the Supreme Court. The clerk of the Supreme Court will procure or reproduce copies thereof for distribution as directed by the Court. If it is necessary to reproduce copies, the clerk may require a deposit by the petitioner to cover the costs thereof.

(g) **Filing and Service of Briefs**.

(1) **Cases Certified Before Determination by Court of Appeals**. When a case is certified for review by the Supreme Court before being determined by the Court of Appeals, the times allowed the parties by Rule 13 to file their respective briefs are not thereby extended. If a party has filed its brief in the Court of Appeals and served copies before the case is certified, the clerk of the Court of Appeals shall forthwith transmit to the clerk of the Supreme Court the original brief and any copies already reproduced for distribution, and if filing was timely in the Court of Appeals this constitutes timely filing in the Supreme Court. If a party has not filed its brief in the Court of Appeals and served copies before the case is certified, the party shall file its brief in the Supreme Court and serve copies within the time allowed and in the manner provided by Rule 13 for filing and serving in the Court of Appeals.

(2) **Cases Certified for Review of Court of Appeals Determinations**. When a case is certified for review by the Supreme Court of a determination made by the Court of Appeals, the appellant shall file a new brief prepared in conformity with Rule 28 in the Supreme Court and serve copies upon all other parties within thirty days after the case is docketed in the Supreme Court by entry of its order of certification. The appellee shall file a new brief in the Supreme Court and serve copies upon all other parties within thirty days after a copy of appellant's brief is served upon the appellee. An appellant may file and serve a reply brief as provided in Rule 28(h).

(3) **Copies**. The clerk of the Supreme Court will reproduce copies of the briefs for distribution as directed by the Supreme Court. The clerk may require a deposit by any party to cover the costs of reproducing copies of its brief. In civil appeals *in forma pauperis* a party need not pay the deposit for reproducing copies.

(4) **Failure to File or Serve**. If an appellant fails to file and serve its brief within the time allowed by this Rule 15, the appeal may be dismissed on motion of an appellee or upon the Court's own initiative. If an appellee fails to file and serve its brief within the time allowed by this Rule 15, it may not be heard in oral argument except by permission of the Court.

(h) **Discretionary Review of Interlocutory Orders**. An interlocutory order by the Court of Appeals, including an order for a new trial or for further proceedings in the trial tribunal, will be certified for review by the Supreme Court only upon a determination by the Court that failure to certify would cause a delay in final adjudication which would probably result in substantial harm to a party.

(i) **Appellant, Appellee Defined**. As used in this Rule 15, the terms "appellant" and "appellee" have the following meanings:

(1) With respect to Supreme Court review prior to determination by the Court of Appeals, whether on petition of a party or on the Court's own initiative, "appellant" means a party who appealed from the trial tribunal; "appellee" means a party who did not appeal from the trial tribunal.

(2) With respect to Supreme Court review of a determination of the Court of Appeals, whether on petition of a party or on the Court's own initiative, "appellant" means the party aggrieved by the determination of the Court of Appeals; "appellee" means the opposing party; provided that, in its order of certification, the Supreme Court may designate either party an appellant or appellee for purposes of proceeding under this Rule 15.

History Note.

287 N.C. 671; 301 N.C. 731; 304 N.C. 738; 322 N.C. 850; 368 N.C. 1067; 324 N.C. 585; 324 N.C. 613; 345 N.C. 765; 354 N.C. 598; 354 N.C. 609; 359 N.C. 883; 363 N.C. 901; 365 N.C. 583; 369 N.C. 763; 379 N.C. 694; 385 N.C. 918; Order Dated 19 March 2025.

Rule 16. Scope of Review of Decisions of Court of Appeals

(a) **How Determined**. Review by the Supreme Court after a determination by the Court of Appeals, whether by appeal of right or by discretionary review, is to determine whether there is error of law in the decision of the Court of Appeals. Review by the Supreme Court is limited to consideration of the issues stated in the notice of appeal filed pursuant to Rule 14(b)(2) or the petition for discretionary review and the response thereto filed pursuant to Rule 15(c) and (d), unless further limited by the Supreme Court, and properly presented in the new briefs required by Rules 14(d)(1) and 15(g)(2) to be filed in the Supreme Court.

(b) [Reserved]

(c) **Appellant, Appellee Defined**. As used in this Rule 16, the terms "appellant" and "appellee" have the following meanings when applied to discretionary review:

(1) With respect to Supreme Court review of a determination of the Court of Appeals upon petition of a party, "appellant" means the petitioner and "appellee" means the respondent.

(2) With respect to Supreme Court review upon the Court's own initiative, "appellant" means the party aggrieved by the decision of the Court of Appeals and "appellee" means the opposing party; provided that, in its order of certification, the Supreme Court may designate either party an "appellant" or "appellee" for purposes of proceeding under this Rule 16.

History Note.

287 N.C. 671; 309 N.C. 830; 322 N.C. 850; 324 N.C. 613; 327 N.C. 671; 354 N.C. 609; 363 N.C. 901; 369 N.C. 763; Order Dated 19 March 2025.

Rule 17. Appeal Bond in Appeals Under N.C.G.S. §§ 7A-30, 7A-31

(a) **Appeal of Right**. In all appeals of right from the Court of Appeals to the Supreme Court in civil cases, the party who takes appeal shall, upon filing the notice of appeal in the Supreme Court, file with the clerk of that Court a written undertaking, with good and sufficient surety in the sum of $250, or make a monetary deposit in lieu thereof, to the effect that all costs awarded against the appealing party on the appeal will be paid.

(b) **Discretionary Review of Court of Appeals Determination**. When the Supreme Court on petition of a party certifies a civil case for review of a determination of the Court of Appeals, the petitioner shall file an undertaking for costs in the form provided in subsection (a). When the Supreme Court on its own initiative certifies a case for review of a determination of the Court of Appeals, no undertaking for costs shall be required of any party.

(c) **Discretionary Review by Supreme Court Before Court of Appeals Determination**. When a civil case is certified for review by the Supreme Court before being determined by the Court of Appeals, the undertaking on appeal initially filed in the Court of Appeals shall stand for the payment of all costs incurred in either the Court of Appeals or the Supreme Court and awarded against the party appealing.

(d) **Appeals *In Forma Pauperis***. No undertakings for costs are required of a party appealing *in forma pauperis*.

History Note.

287 N.C. 671; 295 N.C. 741; 324 N.C. 613; 327 N.C. 671; 354 N.C. 609; 363 N.C. 901; 369 N.C. 763; 379 N.C. 694.

Article IV
Direct Appeals from Administrative Tribunals to Appellate Division

Rule 18. Taking Appeal; Record on Appeal—Composition and Settlement

(a) **General**. Appeals of right from administrative agencies, boards, commissions, or the Office of Administrative Hearings (referred to in these rules as "administrative tribunals") directly to the appellate division under N.C.G.S. § 7A-29 shall be in accordance with the procedures provided in these rules for appeals of right from the courts of the trial divisions, except as provided in this Article.

(b) **Time and Method for Taking Appeals**.

(1) The times and methods for taking appeals from an administrative tribunal shall be as provided in this Rule 18 unless the General Statutes provide otherwise, in which case the General Statutes shall control.

(2) Any party to the proceeding may appeal from a final decision of an administrative tribunal to the appropriate court of the appellate division for alleged errors of law by filing and serving a notice of appeal within thirty days after receipt of a copy of the final decision of the administrative tribunal. The final decision of the administrative tribunal is to be sent to the parties by Registered or Certified Mail. The notice of appeal shall specify the party or parties taking the appeal; shall designate the final administrative tribunal decision from which appeal is taken and the court to which appeal is taken; and shall be signed by counsel of record for the party or parties taking the appeal, or by any such party not represented by counsel of record.

(3) If a transcript of fact-finding proceedings is not made as part of the process leading up to the final administrative tribunal decision, then the parties may order transcripts using the procedures applicable to court proceedings in Rule 7.

(c) **Composition of Printed Record**. The printed record in appeals from any administrative tribunal shall contain:

(1) an index of the contents of the printed record, which shall appear as the first page thereof;

(2) a statement identifying the administrative tribunal from whose judgment, order, or opinion appeal is taken; the session at which the judgment, order, or opinion was rendered, or if rendered out of session, the time and place of rendition; and the party appealing;

(3) a copy of the summons with return, notice of hearing, or other documents showing jurisdiction of the administrative tribunal over persons or property sought to be bound in the proceeding, or a statement showing same;

(4) copies of all other notices, pleadings, petitions, or other documents required by law or rule to be filed with the administrative tribunal to present and define the matter for determination, including a Form 44 for all workers' compensation cases which originate from the Industrial Commission;

(5) a copy of any findings of fact and conclusions of law and a copy of the order, award, decision, or other determination of the administrative tribunal from which appeal was taken;

(6) so much of the litigation before the administrative tribunal or before any division, commissioner, deputy commissioner, or hearing officer of the administrative tribunal, set out in the form provided in Rule 9(c)(1), as is necessary for an understanding of all issues presented on appeal, or a statement specifying that the transcript of proceedings is being filed pursuant to Rule 9(c)(2) and (3);

(7) when the administrative tribunal has reviewed a record of proceedings before a division or an individual commissioner, deputy commissioner, or hearing officer of the administrative tribunal, copies of all items included in the record filed with the administrative tribunal which are necessary for an understanding of all issues presented on appeal;

(8) copies of all other documents filed and statements of all other proceedings had before the administrative tribunal or any of its individual commissioners, deputies, or divisions which are necessary to an understanding of all issues presented on appeal unless they appear in another component of the record on appeal;

(9) a copy of the notice of appeal from the administrative tribunal, of all orders establishing time limits relative to the perfecting of the appeal, of any order finding a party to the appeal to be a civil pauper, and of any agreement, notice of approval, or order settling the record on appeal;

(10) proposed issues on appeal relating to the actions of the administrative tribunal, set out as provided in Rule 10;

(11) a statement, when appropriate, that the record of proceedings was made with an electronic recording device;

(12) a statement, when appropriate, that a supplement compiled pursuant to Rule 18(d)(3) is being filed separately;

(13) any order (issued prior to the filing of the record on appeal) ruling upon any motion by an attorney who is not licensed to practice law in North Carolina to be admitted pursuant to N.C.G.S. § 84-4.1 to appear in the appeal. In the event such a motion is filed prior to the filing of the printed record but has not yet been ruled upon when the printed record is filed, the printed record shall include a statement that such a motion is pending and the date that motion was filed;

(14) a statement, when appropriate, that copies of exhibits, copies of other items, or both have been included in the record on appeal pursuant to Rule 9(d) and are being filed separately; and

(15) a brief description of each original exhibit and other original item that has been included in the record on appeal pursuant to Rule 9(d).

(d) **Settling the Record on Appeal**. The record on appeal may be settled by any of the following methods:

(1) **By Agreement**. Within forty-five days after all of the transcripts that have been ordered according to Rule 7 and Rule 18(b)(3) are delivered or forty-five days after the last notice of appeal is filed, whichever is later, the parties may by agreement entered in the printed record settle a proposed record on appeal that has been prepared by any party in accordance with this Rule 18 as the record on appeal.

(2) **By Appellee's Approval of Appellant's Proposed Record on Appeal**. If the record on appeal is not settled by agreement under Rule 18(d)(1), the appellant shall, within the same times provided, serve upon all other parties a proposed record on appeal constituted in accordance with the provisions of Rule 18(c). Within thirty days after service of the proposed record on appeal upon an appellee, that appellee may serve upon all other parties a notice of approval of the proposed record on appeal or objections, amendments, or a proposed alternative record on appeal. Amendments or objections to the proposed record on appeal shall be set out in a separate document and shall specify any item(s) for which an objection is based on the contention that the item was not filed, served, submitted for consideration, admitted, or made the subject of an offer of proof, or that the content of a statement or narration is factually inaccurate. An appellant who objects to an appellee's response to the proposed record on appeal shall make the same specification in its request for judicial settlement. The formatting of the record on appeal and the order in which items appear in it is the responsibility of the appellant.

Judicial settlement is not appropriate for disputes concerning only the formatting or the order in which items appear in the settled record on appeal. If all appellees within the times allowed them either serve notices of approval or fail to serve either notices of approval or objections, amendments, or proposed alternative records on appeal, appellant's proposed record on appeal thereupon constitutes the record on appeal.

(3) **By Agreement, by Operation of Rule, or by Court Order After Appellee's Objection or Amendment**. If any appellee timely serves amendments, objections, or a proposed alternative record on appeal, the record on appeal shall include each item that is either among those items required by Rule 18(c) or that is requested by any party to the appeal and agreed upon for inclusion by all other parties to the appeal, in the absence of contentions that the item was not filed, served, or offered into evidence. Additionally, if a party requests that an item be included in the record on appeal but not all parties to the appeal agree to its inclusion, then that item shall be filed by the appellant in a volume captioned "Rule 18(d)(3) Supplement"; provided that any item not filed, served, submitted for consideration, admitted, or for which no offer of proof was tendered shall not be included in the record on appeal. Subject to the additional requirements of Rule 28(d), items in the Rule 18(d)(3) supplement may be cited and used by the parties like any other component of the record on appeal.

If a party does not agree to the wording of a statement or narration required or permitted by these rules, there shall be no judicial settlement to resolve the dispute unless the objection is based on a contention that the statement or narration concerns an item that was not filed, served, submitted for consideration, admitted, or tendered in an offer of proof, or that a statement or narration is factually inaccurate. Instead, the objecting party is permitted to have inserted in the settled record on appeal a concise counter-statement. Parties are strongly encouraged to reach agreement on the wording of statements in records on appeal.

The Rule 18(d)(3) supplement shall contain an index of the contents of the supplement, which shall appear as the first page thereof. The Rule 18(d)(3) supplement shall be paginated consecutively with the pages of the printed record, the first page of the supplement to bear the next consecutive number following the number of the last page of the printed record. These pages shall be referred to as "record supplement pages," and shall be

cited as "(R S p ___)." The contents of the supplement should be arranged, so far as practicable, in the order in which they occurred or were filed in the administrative tribunal. If a party does not agree to the inclusion or specification of an exhibit or transcript in the printed record, the printed record shall include a statement that such items are separately filed along with the supplement.

If any party to the appeal contends that materials proposed for inclusion in the record or for filing therewith pursuant to these rules were not filed, served, submitted for consideration, admitted, or offered into evidence, or that a statement or narration permitted by these rules is not factually accurate, then that party, within ten days after expiration of the time within which the appellee last served with the appellant's proposed record on appeal might have served amendments, objections, or a proposed alternative record on appeal, may in writing request that the administrative tribunal convene a conference to settle the record on appeal. A copy of that request, endorsed with a certificate showing service on the administrative tribunal, shall be served upon all other parties. Each party shall promptly provide to the administrative tribunal a reference copy of the record items, amendments, or objections served by that party in the case.

The functions of the administrative tribunal in the settlement of the record on appeal are to determine whether a statement permitted by these rules is not factually accurate, to settle narrations of proceedings under Rule 18(c)(6), and to determine whether the record accurately reflects material filed, served, submitted for consideration, admitted, or made the subject of an offer of proof, but not to decide whether material desired in the record by either party is relevant to the issues on appeal, non-duplicative, or otherwise suited for inclusion in the record on appeal.

Upon receipt of a request for settlement of the record on appeal, the administrative tribunal shall send written notice to counsel for all parties setting a place and time for a conference to settle the record on appeal. The conference shall be held not later than fifteen days after service of the request upon the administrative tribunal. The administrative tribunal or a delegate appointed in writing by the administrative tribunal shall settle the record on appeal by order entered not more than twenty days after service of the request for settlement upon the administrative tribunal. If requested, the settling official shall

return the record items submitted for reference during the settlement process with the order settling the record on appeal.

When the administrative tribunal is a party to the appeal, the administrative tribunal shall forthwith request the Chief Judge of the Court of Appeals or the Chief Justice of the Supreme Court, as appropriate, to appoint a referee to settle the record on appeal. The referee so appointed shall proceed after conference with all parties to settle the record on appeal in accordance with the terms of these rules and the appointing order.

If any appellee timely serves amendments, objections, or a proposed alternative record on appeal, and no judicial settlement of the record is sought, the record is deemed settled as of the expiration of the ten-day period within which any party could have requested judicial settlement of the record on appeal under this Rule 18(d)(3).

Nothing herein shall prevent settlement of the record on appeal by agreement of the parties at any time within the times herein limited for settling the record by administrative tribunal decision.

(e) **Further Procedures and Additional Materials in the Record on Appeal**. Further procedures for perfecting and prosecuting the appeal shall be as provided by these rules for appeals from the courts of the trial divisions.

(f) **Extensions of Time**. The times provided in this rule for taking any action may be extended in accordance with the provisions of Rule 27(c).

History Note.

287 N.C. 671; 292 N.C. 739; 301 N.C. 732; 313 N.C. 778; 324 N.C. 613; 327 N.C. 671; 345 N.C. 765; 347 N.C. 679; 354 N.C. 609; 358 N.C. 837; 361 N.C. 732; 363 N.C. 901; 369 N.C. 763; 371 N.C. 974; 375 N.C. 1034; 379 N.C. 694.

Rule 19. [Reserved]

History Note.

287 N.C. 671; 292 N.C. 739; 313 N.C. 778; 324 N.C. 613; 354 N.C. 609; 363 N.C. 901; 369 N.C. 763.

Rule 20. Miscellaneous Provisions of Law Governing Appeals from Administrative Tribunals

Specific provisions of law pertaining to stays pending appeals from any administrative tribunal to the appellate division, to pauper appeals therein, and to

the scope of review and permissible mandates of the Court of Appeals therein shall govern the procedure in such appeals notwithstanding any provisions of these rules that may prescribe a different procedure.

History Note.

287 N.C. 671; 313 N.C. 778; 324 N.C. 613; 354 N.C. 609; 363 N.C. 901; 369 N.C. 763.

Article V
Extraordinary Writs

Rule 21. Certiorari

(a) **Scope of the Writ**.

(1) **Review of the Judgments and Orders of Trial Tribunals**. The writ of certiorari may be issued in appropriate circumstances by either appellate court to permit review of the judgments and orders of trial tribunals when the right to prosecute an appeal has been lost by failure to take timely action, or when no right of appeal from an interlocutory order exists, or for review pursuant to N.C.G.S. § 15A-1422(c)(3) of an order of the trial court ruling on a motion for appropriate relief.

(2) **Review of the Judgments and Orders of the Court of Appeals**. The writ of certiorari may be issued by the Supreme Court in appropriate circumstances to permit review of the decisions and orders of the Court of Appeals when the right to prosecute an appeal of right or to petition for discretionary review has been lost by failure to take timely action, or for review of orders of the Court of Appeals when no right of appeal exists.

(b) **Petition for Writ—to Which Appellate Court Addressed**. Application for the writ of certiorari shall be made by filing a petition therefor with the clerk of the court of the appellate division to which appeal of right might lie from a final judgment in the cause by the tribunal to which issuance of the writ is sought.

(c) **Petition for Writ—Filing and Service; Content**. The petition shall be filed without unreasonable delay and shall be accompanied by proof of service upon all other parties. For cases which arise from the Industrial Commission, a copy of the petition shall be served on the Chair of the Industrial Commission. The petition shall contain a statement of the facts necessary to an understanding of the issues presented by the application; a statement of the reasons why the writ should issue; and certified copies of the judgment, order, or opinion or parts of the record which may be essential to an understanding of the matters set forth in the petition.

The petition shall be verified by counsel or the petitioner. Upon receipt of the prescribed docket fee, the clerk will docket the petition.

(d) **Response; Determination by Court**. Within ten days after service of the petition any party may file a response thereto with supporting affidavits or certified portions of the record not filed with the petition. Filing shall be accompanied by proof of service upon all other parties. The court for good cause shown may shorten the time for filing a response. Determination will be made on the basis of the petition, the response, any supporting items, and any briefs filed under Rule 28.1. Except as provided by Rule 28.1, no briefs or oral argument will be received or allowed unless ordered by the court upon its own initiative.

(e) **Petition for Writ in Post-conviction Matters—to Which Appellate Court Addressed**. Petitions for writ of certiorari to review orders of the trial court denying motions for appropriate relief upon grounds listed in N.C.G.S. § 15A-1415(b) by persons who have been convicted of murder in the first degree and sentenced to death shall be filed in the Supreme Court. In all other cases such petitions shall be filed in and determined by the Court of Appeals, and the Supreme Court will not entertain petitions for certiorari or petitions for further discretionary review in these cases. In the event the petitioner unreasonably delays in filing the petition or otherwise fails to comply with a rule of procedure, the petition shall be dismissed by the court. If the petition is without merit, it shall be denied by the court.

(f) **Petition for Writ in Post-conviction Matters—Death Penalty Cases**. A petition for writ of certiorari to review orders of the trial court on motions for appropriate relief in death penalty cases shall be filed in the Supreme Court within sixty days after delivery of the transcript of the hearing on the motion for appropriate relief to the petitioning party. The responding party shall file its response within thirty days of service of the petition.

History Note.

287 N.C. 671; 304 N.C. 739; 312 N.C. 803; 322 N.C. 844; 368 N.C. 1067; 324 N.C. 613; 345 N.C. 765; 354 N.C. 609; 356 N.C. 701; 363 N.C. 901; 367 N.C. 954; 369 N.C. 763; 379 N.C. 694; 385 N.C. 918.

Rule 22. Mandamus and Prohibition

(a) **Petition for Writ—to Which Appellate Court Addressed**. Applications for the writs of mandamus or prohibition directed to a judge, judges, commissioner, or commissioners shall be made by filing a petition therefor with the clerk of the court to which appeal of right might lie from a final judgment entered in the cause by the judge, judges, commissioner, or commissioners to whom issuance of the writ is sought.

(b) **Petition for Writ—Filing and Service; Content**. The petition shall be filed without unreasonable delay after the judicial action sought to be prohibited

or compelled has been undertaken, or has occurred, or has been refused, and shall be accompanied by proof of service on the respondent judge, judges, commissioner, or commissioners and on all other parties to the action. The petition shall contain a statement of the facts necessary to an understanding of the issues presented by the application; a statement of the issues presented and of the relief sought; a statement of the reasons why the writ should issue; and certified copies of any order or opinion or parts of the record that may be essential to an understanding of the matters set forth in the petition. The petition shall be verified by counsel or the petitioner. Upon receipt of the prescribed docket fee, the clerk shall docket the petition.

(c) **Response; Determination by Court**. Within ten days after service of the petition the respondent or any party may file a response thereto with supporting affidavits or certified portions of the record not filed with the petition. Filing shall be accompanied by proof of service upon all other parties. The court for good cause shown may shorten the time for filing a response. Determination will be made on the basis of the petition, the response, any supporting items, and any briefs filed under Rule 28.1. Except as provided by Rule 28.1, no briefs or oral argument will be received or allowed unless ordered by the court upon its own initiative.

History Note.

287 N.C. 671; 324 N.C. 613; 354 N.C. 609; 363 N.C. 901; 369 N.C. 763; 379 N.C. 694; 385 N.C. 918.

Rule 23. Supersedeas

(a) **Pending Review of Trial Tribunal Judgments and Orders**.

(1) **Application—When Appropriate**. Application may be made to the appropriate appellate court for a writ of supersedeas to stay the execution or enforcement of any judgment, order, or other determination of a trial tribunal which is not automatically stayed by the taking of appeal when an appeal has been taken, or a petition for mandamus, prohibition, or certiorari has been filed to obtain review of the judgment, order, or other determination; and (1) a stay order or entry has been sought by the applicant by deposit of security or by motion in the trial tribunal and such order or entry has been denied or vacated by the trial tribunal, or (2) extraordinary circumstances make it impracticable to obtain a stay by deposit of security or by application to the trial tribunal for a stay order.

(2) **Application—How and to Which Appellate Court Made**. Application for the writ is by petition which shall in all cases, except those initially docketed in the Supreme Court, be first made to the Court of Appeals. Except when an appeal from a superior court is initially docketed in the Supreme Court, no

petition will be entertained by the Supreme Court unless application has been made first to the Court of Appeals and denied by that court.

(b) **Pending Review by Supreme Court of Court of Appeals Decisions**. Application may be made in the first instance to the Supreme Court for a writ of supersedeas to stay the execution or enforcement of a judgment, order, or other determination mandated by the Court of Appeals when a notice of appeal of right or a petition for discretionary review has been or will be timely filed, or a petition for review by certiorari, mandamus, or prohibition has been filed to obtain review of the decision of the Court of Appeals. No prior motion for a stay order need be made to the Court of Appeals.

(c) **Petition for Writ—Filing and Service; Content**. The petition shall be filed with the clerk of the court to which application is being made and shall be accompanied by proof of service upon all other parties. The petition shall be verified by counsel or the petitioner. Upon receipt of the required docket fee, the clerk will docket the petition.

For stays of the judgments of trial tribunals, the petition shall contain a statement that stay has been sought in the court to which issuance of the writ is sought and denied or vacated by that court, or shall contain facts showing that it was impracticable there to seek a stay. For stays of any judgment, the petition shall contain: (1) a statement of any facts necessary to an understanding of the basis upon which the writ is sought; and (2) a statement of reasons why the writ should issue in justice to the applicant. The petition may be accompanied by affidavits and by any certified portions of the record pertinent to its consideration. It may be included in a petition for discretionary review by the Supreme Court under N.C.G.S. § 7A-31, or in a petition to either appellate court for certiorari, mandamus, or prohibition.

(d) **Response; Determination by Court**. Within ten days after service of the petition any party may file a response thereto with supporting affidavits or certified portions of the record not filed with the petition. Filing shall be accompanied by proof of service upon all other parties. The court for good cause shown may shorten the time for filing a response. Determination will be made on the basis of the petition, the response, any supporting items, and any briefs filed under Rule 28.1. Except as provided by Rule 28.1, no briefs or oral argument will be received or allowed unless ordered by the court upon its own initiative.

(e) **Temporary Stay**. Upon the filing of a petition for supersedeas, the applicant may apply, either within the petition or by a separate filing, for an order temporarily staying enforcement or execution of the judgment, order, or other determination pending decision by the court upon the petition for supersedeas. If application is made by a separate filing, it shall be filed and served in the manner provided for the petition for supersedeas in Rule 23(c). The court for good cause shown in such a petition for temporary stay may issue such an order ex parte. In capital cases, such stay, if granted, shall remain in effect until the period for filing

a petition for certiorari in the United States Supreme Court has passed without a petition being filed, or until certiorari on a timely filed petition has been denied by that Court. At that time, the stay shall automatically dissolve.

History Note.

287 N.C. 671; 301 N.C. 733; 324 N.C. 613; 345 N.C. 765; 354 N.C. 609; 363 N.C. 901; 369 N.C. 763; 379 N.C. 694; 385 N.C. 918.

Rule 24. [Reserved]

History Note.

287 N.C. 671; 324 N.C. 613; 354 N.C. 609; 363 N.C. 901; 369 N.C. 763; 379 N.C. 694.

Article VI
General Provisions

Rule 25. Penalties for Failure to Comply with Rules

(a) **Failure of Appellant to Take Timely Action**. If after giving notice of appeal from any court, commission, or commissioner the appellant shall fail within the times allowed by these rules or by order of court to take any action required to present the appeal for decision, the appeal may on motion of any other party be dismissed. Prior to the filing of an appeal in an appellate court, motions to dismiss are made to the court, commission, or commissioner from which appeal has been taken; after an appeal has been filed in an appellate court, motions to dismiss are made to that court. Motions to dismiss shall be supported by affidavits or certified copies of docket entries which show the failure to take timely action or otherwise perfect the appeal and shall be allowed unless compliance or a waiver thereof is shown on the record, or unless the appellee shall consent to action out of time, or unless the court for good cause shall permit the action to be taken out of time.

Motions heard under this rule to courts of the trial divisions may be heard and determined by any judge of the particular court specified in Rule 36 of these rules; motions made under this rule to a commission may be heard and determined by the chair of the commission; or if to a commissioner, then by that commissioner. The procedure in all motions made under this rule to trial tribunals shall be that provided for motion practice by the Rules of Civil Procedure; in all motions made under this rule to courts of the appellate division, the procedure shall be that provided by Rule 37 of these rules.

(b) **Sanctions for Failure to Comply with Rules**. A court of the appellate division may, on its own initiative or motion of a party, impose a sanction against a party or attorney or both when the court determines that such party or

attorney or both substantially failed to comply with these rules, including failure to pay any filing or printing fees or costs when due. The court may impose sanctions of the type and in the manner prescribed by Rule 34 for frivolous appeals.

History Note.

287 N.C. 671; 368 N.C. 1067; 324 N.C. 613; 345 N.C. 765; 354 N.C. 609; 363 N.C. 901; 365 N.C. 582; 369 N.C. 763.

Rule 26. Filing and Service

(a) **Filing**. Counsel must file documents in the appellate courts electronically at https://www.ncappellatecourts.org. If a technical failure prevents counsel from filing a document by use of the electronic-filing site, then the clerk of the appellate court may permit the document to be filed in paper by hand delivery, mail, or fax. Counsel may file copies of oversized documents and non-documentary items electronically if permitted to do so by the electronic-filing site, but otherwise by hand delivery or mail.

A person who is not represented by counsel is encouraged to file items in the appellate courts electronically but is not required to do so. A person not represented by counsel may file items by hand delivery or mail.

An item is filed in the appellate court electronically when it is received by the electronic-filing site. An item is filed in paper when it is received by the clerk, except that motions, responses to petitions, the record on appeal, and briefs filed by mail are deemed filed on the date of mailing as evidenced by the proof of service.

(b) **Service Required**. Copies of all items filed by any party shall, at or before the time of filing, be served on all other parties to the appeal.

(c) **Manner of Service**. Service of any item may be made upon a party's attorney of record or upon a party in the manner provided for service and return of process in Rule 4 of the Rules of Civil Procedure. Service of any item may alternatively be made upon a party's attorney of record or upon a party by delivering a copy to either or by mailing a copy to the recipient's last known address, or if no address is known, by filing it in the office of the clerk with whom the original item is filed. Delivery of a copy within this rule means handing it to the attorney or to the party or leaving it at the attorney's office with a partner or employee. Service by mail is complete upon deposit of the item enclosed in a postpaid, properly addressed wrapper in a post office or official depository under the exclusive care and custody of the United States Postal Service, or, for those having access to such services, upon deposit with the State Courier Service or Inter-Office Mail.

If the item to be served is filed electronically in the appellate courts using the appellate courts' electronic-filing site, then service may alternatively be made upon a party's attorney of record by e-mail to the attorney's correct and current e-mail

address. If the item to be served is filed with the clerk of superior court using *Odyssey*, the trial court's electronic-filing system, then service may alternatively be made using the service feature in that system.

(d) **Proof of Service**. Items presented for filing shall contain an acknowledgment of service by the person served or proof of service in the form of a statement of the date and manner of service and of the names of the persons served, certified by the person who made service. Proof of service shall appear on or be affixed to the items filed. But if the item is filed with the clerk of superior court and served using *Odyssey*, then a Notification of Service generated by that system satisfies the requirements of this subsection.

(e) **Joint Appellants and Appellees**. Any item required by these rules to be served on a party is properly served upon all parties joined in the appeal by service upon any one of them.

(f) **Numerous Parties to Appeal Proceeding Separately**. When there are unusually large numbers of appellees or appellants proceeding separately, the trial tribunal, upon motion of any party or on its own initiative, may order that any items required by these rules to be served by a party on all other parties need be served only upon parties designated in the order, and that the filing of such an item and service thereof upon the parties designated constitutes due notice of it to all other parties. A copy of every such order shall be served upon all parties to the action in such manner and form as the court directs.

(g) **Formatting of Documents Filed with Appellate Courts**.

(1) **Form of Documents**. Documents composed for an appeal and presented to either appellate court for filing shall be letter size (8½ x 11"). Documents shall be prepared using a proportionally spaced font with serifs that is no smaller than 12-point and no larger than 14-point in size. Examples of proportionally spaced fonts with serifs include, but are not limited to, Constantia and Century typeface as described in Appendix B to these rules. The body of text shall be presented with double spacing between each line of text. Lines of text shall be no wider than 6½ inches, leaving a margin of approximately one inch on each side. The format of all documents presented for filing shall follow the additional instructions found in the appendixes to these rules. The format of briefs shall follow the additional instructions found in Rule 28(j).

(2) **Index Required**. Documents composed for an appeal and presented to either appellate court, other than records on appeal, which in this respect are governed by Rule 9, shall, unless they are less than ten pages in length, be preceded by a subject index of the matter contained therein, with page references, and a table of authorities, i.e., cases (alphabetically arranged), constitutional

provisions, statutes, and textbooks cited, with references to the pages where they are cited.

(3) **Closing**. The body of a document composed for an appeal shall at its close bear the printed name, post office address, telephone number, State Bar number, and e-mail address of counsel of record, and in addition, at the appropriate place, the signature of counsel of record.

History Note.

287 N.C. 671; 304 N.C. 739; 304 N.C. 741; 306 N.C. 757; 312 N.C. 803; 322 N.C. 850; 324 N.C. 613; 327 N.C. 671; 345 N.C. 765; 351 N.C. 659; 354 N.C. 598; 354 N.C. 609; 356 N.C. 701; 356 N.C. 706; 357 N.C. 665; 358 N.C. 829; 363 N.C. 901; 369 N.C. 763; 371 N.C. 974; 379 N.C. 694; 384 N.C. 699.

Rule 27. Computation and Extension of Time

(a) **Computation of Time**. In computing any period of time prescribed or allowed by these rules, by order of court, or by any applicable statute, the day of the act, event, or default after which the designated period of time begins to run is not to be included. The last day of the period so computed is to be included, unless it is a Saturday, Sunday, or a legal holiday when the courthouse is closed for transactions, in which event the period runs until the end of the next day which is not a Saturday, Sunday, or a legal holiday when the courthouse is closed for transactions.

(b) **Additional Time After Service**. Except as to filing of notice of appeal pursuant to Rule 3(c), whenever a party has the right to do some act or take some proceedings within a prescribed period after the service of a notice or other item and the notice or item is served by mail, or by e-mail if allowed by these rules, three days shall be added to the prescribed period.

(c) **Extensions of Time; By Which Court Granted**. Except as herein provided, courts for good cause shown may upon motion extend any of the times prescribed by these rules, or by order of court, for doing any act required or allowed under these rules, or may permit an act to be done after the expiration of such time. Courts may not extend the time for taking an appeal or for filing a petition for discretionary review or a petition for rehearing or the responses thereto prescribed by these rules or by law.

(1) **Motions for Extension of Time in the Trial Division**. The trial tribunal for good cause shown by the appellant may extend once, for no more than thirty days, the time permitted by: (1) Rule 7 for a transcriptionist to deliver a transcript; and (2) Rule 11 or Rule 18 for service of the proposed record on appeal.

Motions for extensions of time made to a trial tribunal may be made orally or in writing and without notice to other parties and may be determined at any time or place within the state.

Motions made under this Rule 27 to a court of the trial division may be heard and determined by any of those judges of the particular court specified in Rule 36 of these rules. Such motions made to a commission may be heard and determined by the chair of the commission; or if to a commissioner, then by that commissioner.

(2) **Motions for Extension of Time in the Appellate Division**. All motions for extensions of time other than those specifically enumerated in Rule 27(c)(1) may be made only to the appellate court to which appeal has been taken.

(d) **Motions for Extension of Time; How Determined**. Motions for extension of time made in any court may be determined *ex parte*, but the moving party shall promptly serve on all other parties to the appeal a copy of any order extending time; provided that motions made after the expiration of the time allowed in these rules for the action sought to be extended must be in writing and with notice to all other parties and may be allowed only after all other parties have had an opportunity to be heard.

History Note.

287 N.C. 671; 294 N.C. 749; 295 N.C. 742; 312 N.C. 803; 368 N.C. 1067; 324 N.C. 613; 327 N.C. 671; 354 N.C. 598; 354 N.C. 609; 363 N.C. 901; 365 N.C. 583; 369 N.C. 763; 375 N.C. 1034; 379 N.C. 694.

Rule 28. Briefs—Function and Content

(a) **Function**. The function of all briefs required or permitted by these rules is to define clearly the issues presented to the reviewing court and to present the arguments and authorities upon which the parties rely in support of their respective positions thereon. The scope of review on appeal is limited to issues so presented in the several briefs. Issues not presented and discussed in a party's brief are deemed abandoned. Similarly, issues properly presented for review in the Court of Appeals, but not then stated in the notice of appeal or the petition accepted by the Supreme Court for review and discussed in the new briefs required by Rules 14(d)(1) and 15(g)(2) to be filed in the Supreme Court for review by that Court, are deemed abandoned.

(b) **Content of Appellant's Brief**. An appellant's brief shall contain, under appropriate headings and in the form prescribed by Rule 26(g) and the appendixes to these rules, in the following order:

(1) A cover page, followed by a subject index and table of authorities as required by Rule 26(g).

(2) A statement of the issues presented for review. The proposed issues on appeal listed in the printed record shall not limit the scope of the issues that an appellant may argue in its brief.

(3) A concise statement of the procedural history of the case. This shall indicate the nature of the case and summarize the course of proceedings up to the taking of the appeal before the court.

(4) A statement of the grounds for appellate review. Such statement shall include citation of the statute or statutes permitting appellate review. When an appeal is based on Rule 54(b) of the Rules of Civil Procedure, the statement shall show that there has been a final judgment as to one or more but fewer than all of the claims or parties and that there has been a certification by the trial court that there is no just reason for delay. When an appeal is interlocutory, the statement must contain sufficient facts and argument to support appellate review on the ground that the challenged order affects a substantial right.

(5) A full and complete statement of the facts. This should be a non-argumentative summary of all material facts underlying the matter in controversy which are necessary to understand all issues presented for review, supported by references to pages in the record on appeal.

(6) An argument, to contain the contentions of the appellant with respect to each issue presented. Issues not presented in a party's brief, or in support of which no reason or argument is stated, will be taken as abandoned.

The argument shall contain a concise statement of the applicable standard(s) of review for each issue, which shall appear either at the beginning of the discussion of each issue or under a separate heading placed before the beginning of the discussion of all the issues.

The body of the argument and the statement of applicable standard(s) of review shall contain citations of the authorities upon which the appellant relies. Evidence or other proceedings material to the issue may be narrated or quoted in the body of the argument, with appropriate reference to the record on appeal, the transcript of proceedings, or exhibits.

(7) A short conclusion stating the precise relief sought.

(8) Identification of counsel by signature, typed name, post office address, telephone number, State Bar number, and e-mail address.

(9) The proof of service required by Rule 26(d).

(10) Any appendix required or allowed by this Rule 28.

(c) **Content of Appellee's Brief; Presentation of Additional Issues**. An appellee's brief shall contain a subject index and table of authorities as required by Rule 26(g), an argument, a conclusion, identification of counsel, and proof of service in the form provided in Rule 28(b) for an appellant's brief, and any appendix required or allowed by this Rule 28. It does not need to contain a statement of the issues presented, procedural history of the case, grounds for appellate review, the facts, or the standard(s) of review, unless the appellee disagrees with the appellant's statements and desires to make a restatement or unless the appellee desires to present issues in addition to those stated by the appellant.

Without taking an appeal, an appellee may present issues on appeal based on any action or omission of the trial court that deprived the appellee of an alternative basis in law for supporting the judgment, order, or other determination from which appeal has been taken. Without having taken appeal or listing proposed issues as permitted by Rule 10(c), an appellee may also argue on appeal whether a new trial should be granted to the appellee rather than a judgment notwithstanding the verdict awarded to the appellant when the latter relief is sought on appeal by the appellant. If the appellee presents issues in addition to those stated by the appellant, the appellee's brief must contain a full, non-argumentative summary of all material facts necessary to understand the new issues supported by references to pages in the record on appeal, the transcript of proceedings, or the appendixes, as appropriate, as well as a statement of the applicable standard(s) of review for those additional issues.

An appellee may supplement the record with any materials pertinent to the issues presented on appeal, as provided in Rule 9(b)(5).

(d) **Appendixes to Briefs**. Whenever the transcript of proceedings is filed pursuant to Rule 9(c)(2), the parties must file portions of the transcript as appendixes to their briefs, if required by this Rule 28(d).

(1) **When Appendixes to Appellant's Brief Are Required**. Except as provided in Rule 28(d)(2), the appellant must reproduce as appendixes to its brief:

a. those portions of the transcript of proceedings which must be reproduced in order to understand any issue presented in the brief;

b. those portions of the transcript showing the pertinent questions and answers when an issue presented in the brief involves the admission or exclusion of evidence;

c. relevant portions of statutes, rules, or regulations, the study of which is required to determine issues presented in the brief;

d. relevant items from the Rule 11(c) or Rule 18(d)(3) supplement, the study of which are required to determine issues presented in the brief.

(2) **When Appendixes to Appellant's Brief Are Not Required**. Notwithstanding the requirements of Rule 28(d)(1), the appellant is not required to reproduce an appendix to its brief with respect to an issue presented:

a. whenever the portion of the transcript necessary to understand an issue presented in the brief is reproduced in the body of the brief;

b. to show the absence or insufficiency of evidence unless there are discrete portions of the transcript where the subject matter of the alleged insufficiency of the evidence is located; or

c. to show the general nature of the evidence necessary to understand an issue presented in the brief if such evidence has been fully summarized as required by Rule 28(b)(4) and (5).

(3) **When Appendixes to Appellee's Brief Are Required**. An appellee must reproduce appendixes to its brief in the following circumstances:

a. Whenever the appellee believes that appellant's appendixes do not include portions of the transcript or items from the Rule 11(c) or Rule 18(d)(3) supplement that are required by Rule 28(d)(1), the appellee shall reproduce those portions of the transcript or supplement it believes to be necessary to understand the issue.

b. Whenever the appellee presents a new or additional issue in its brief as permitted by Rule 28(c), the appellee shall reproduce portions of the transcript or relevant items from the Rule 11(c) or Rule 18(d)(3) supplement as if it were the appellant with respect to each such new or additional issue.

(4) **Format of Appendixes**. The appendixes to the briefs of any party shall be in the format prescribed by Rule 26(g) and shall consist of copies of transcript pages that have been deemed necessary for inclusion in the appendix under this Rule 28(d). The pages of the appendix shall be consecutively numbered, and an index to the appendix shall be placed at its beginning.

(e) **References in Briefs to the Record on Appeal**. References in the briefs to parts of the printed record, transcripts, documents included in the record on appeal pursuant to Rule 9(d), or supplements shall be to the pages in such filings where those portions appear.

(f) **Joinder of Multiple Parties in Briefs**. Any number of appellants or appellees in a single cause or in causes consolidated for appeal may join in a single brief even though they are not formally joined on the appeal. Any party to any appeal may adopt by reference portions of the briefs of others.

(g) **Additional Authorities**. Additional authorities discovered by a party after filing its brief may be brought to the attention of the court by filing a memorandum thereof with the clerk of the court and serving copies upon all other parties. The memorandum may not be used as a reply brief or for additional argument, but shall simply state the issue to which the additional authority applies and provide a full citation of the authority. Authorities not cited in the briefs or in such a memorandum may not be cited and discussed in oral argument.

(h) **Reply Briefs**. Within fourteen days after an appellee's brief has been served on an appellant, the appellant may file and serve a reply brief, subject to the length limitations set forth in Rule 28(j). Any reply brief which an appellant elects to file shall be limited to a concise rebuttal of arguments set out in the appellee's brief and shall not reiterate arguments set forth in the appellant's principal brief. Upon motion of the appellant, the Court may extend the length limitations on such a reply brief to permit the appellant to address new or additional issues presented for the first time in the appellee's brief. Otherwise, motions to extend reply brief length limitations or to extend the time to file a reply brief are disfavored.

(i) [Reserved]

(j) **Word-Count Limitations Applicable to Briefs Filed in the Court of Appeals**. A principal brief filed in the Court of Appeals may contain no more than 8,750 words. A reply brief filed in the Court of Appeals may contain no more than 3,750 words.

(1) **Portions of Brief Included in Word Count**. Footnotes and citations in the body of the brief must be included in the word count. Covers, captions, indexes, tables of authorities, certificates of service, certificates of compliance with this rule, counsel's signature block, and appendixes do not count against these word-count limits.

(2) **Certificate of Compliance**. Parties shall submit with the brief, immediately before the certificate of service, a certification, signed by counsel of record, or in the case of parties filing briefs pro se, by the party, that the brief contains no more than the number of words allowed by this rule. For purposes of this certification, counsel and parties may rely on word counts

reported by word-processing software, as long as footnotes and citations are included in those word counts.

History Note.

287 N.C. 671; 301 N.C. 734; 303 N.C. 715; 304 N.C. 737; 306 N.C. 757; 312 N.C. 803; 322 N.C. 850; 324 N.C. 585; 324 N.C. 613; 327 N.C. 671; 354 N.C. 598; 354 N.C. 609; 356 N.C. 706; 358 N.C. 840; 359 N.C. 883; 361 N.C. 732; 363 N.C. 901; 365 N.C. 583; 369 N.C. 763; 370 N.C. 763; 371 N.C. 974; 375 N.C. 1034; 379 N.C. 694; 385 N.C. 918.

Rule 28.1. Amicus Curiae

(a) **Overview**. An amicus curiae may file a motion asking the court for permission to submit a brief about whether a petition should be allowed or about an issue on appeal. An amicus who has been permitted to submit a brief about an issue on appeal may also file a motion asking for permission to participate in oral argument. The court will not accept responses to the motions described in this rule.

(b) **Submitting an Amicus Brief**.

(1) **Motion and Brief Filed Contemporaneously**. An amicus curiae must file its motion and proposed brief contemporaneously as separate documents.

(2) **Content of Motion**. An amicus curiae's motion asking for permission to submit a brief must state the nature of the amicus's interest, the reasons why the brief would be beneficial to the court, the issues that are addressed in the brief, and the amicus's position on those issues.

(3) **Content of Brief**.

a. **Organization**. An amicus brief should be organized as follows: a cover page, a subject index and table of authorities under Rule 26(g)(2), a statement about the nature of the amicus curiae's interest, a list of the issues addressed in the brief, an argument, a conclusion stating the outcome sought, an identification of counsel under Rule 26(g)(3), and a proof of service under Rule 26(d).

b. **Argument**. An amicus curiae's argument should focus on the question before the court. Therefore, an amicus brief about a petition should address whether the grounds to allow the petition are satisfied, and an amicus brief about one or more of the issues on appeal should address those issues.

c. **Disclosure Footnote**. An amicus brief must contain a statement that either (i) identifies every person or entity

(other than the amicus curiae, its members, or its counsel) who helped write the brief or who contributed money for its preparation, or (ii) specifies that there is no such person or entity. The statement must appear in a footnote on the first page of the amicus brief.

d. **Word-Count Limitation at the Court of Appeals**. An amicus brief filed in the Court of Appeals may contain no more than 3,750 words. An amicus curiae must follow Rule 28(j)(1) to determine the portions of its brief that are included in the word count and must submit with the brief a certificate of compliance as described in Rule 28(j)(2).

(4) **Time for Filing**. If an amicus brief supports a party, then the amicus curiae must file its motion and proposed brief no later than seven days after that party's petition, response to a petition, or principal brief is filed. If an amicus brief does not support any party, then the amicus must file its motion and proposed brief no later than seven days after the response is filed when the amicus brief is about a petition and no later than seven days after the appellee brief is filed when the amicus brief is about an issue on appeal.

(5) **Service on Parties**. When an amicus curiae files its motion and proposed brief, it must serve a copy of both documents on the parties.

(6) **Reply Briefs of Parties**. A party may file a reply brief that is limited to a rebuttal of the arguments set out in the amicus brief. The reply brief must be filed no later than ten days after having been served with an amicus brief about a petition and no later than thirty days after having been served with an amicus brief about an issue on appeal. The court will not accept a reply brief from an amicus curiae.

(c) **Participating in Oral Argument**.

(1) **Standard**. The court will permit an amicus curiae to participate in oral argument only for good cause shown.

(2) **Content of Motion**. An amicus curiae's motion asking for permission to participate in oral argument must include:

a. a description of how the amicus curiae's participation would aid the court's decision-making process; and

b. a statement that indicates whether a party has agreed to yield time to the amicus curiae.

(3) **Time for Filing**. An amicus curiae must file its motion no later than seven days after the clerk sends notice that the appeal has been calendared for oral argument.

(4) **Service on Parties**. When an amicus curiae files its motion, it must serve a copy of the motion on the parties.

(d) **Identification of Amicus Curiae**. The title of an amicus motion and the title of an amicus brief shall identify the names of all individuals or legal entities joining the motion or brief. If there are so many amici that listing each name is not practical, then the amici may instead list a smaller number of names followed by "et al." in the title of the document and include a full list of the amici in an appendix. For the purpose of this rule, the phrase "individuals or legal entities" does not include assumed names, aliases, and unincorporated associations.

History Note.

385 N.C. 918.

Rule 29. Sessions of Courts; Calendar of Hearings

(a) **Sessions of Court**.

(1) **Supreme Court**. The Supreme Court shall be in continuous session for the transaction of business. Appeals will be heard in accordance with a schedule promulgated by the Chief Justice.

(2) **Court of Appeals**. Appeals will be heard in accordance with a schedule promulgated by the Chief Judge. Panels of the Court will sit as scheduled by the Chief Judge. For the transaction of other business, the Court of Appeals shall be in continuous session.

(b) **Calendaring of Cases for Hearing**. Each appellate court will calendar the hearing of all appeals docketed in the court. In general, appeals will be calendared for hearing in the order in which they are docketed, but the court may vary the order for any cause deemed appropriate. On motion of any party, with notice to all other parties, the court may determine without hearing to give an appeal peremptory setting or otherwise to vary the normal calendar order. Except as advanced for peremptory setting on motion of a party or the court's own initiative, no appeal will be calendared for hearing at a time less than thirty days after the filing of the appellant's brief. The clerk of the appellate court will give reasonable notice to all counsel of record of the setting of an appeal for hearing by either e-mailing or mailing a copy of the calendar.

History Note.

287 N.C. 671; 304 N.C. 742; 322 N.C. 844; 324 N.C. 613; 327 N.C. 671; 354 N.C. 609; 363 N.C. 901; 369 N.C. 763; 370 N.C. 763.

Rule 30. Oral Argument and Unpublished Opinions

(a) **Order and Content of Argument**.

(1) The appellant is entitled to open and conclude the argument. The opening argument shall include a fair statement of the case. Oral arguments should complement the written briefs, and counsel will therefore not be permitted to read at length from briefs, records, and authorities.

(2) In matters listed in Rule 42(b), counsel must use initials or a pseudonym in oral argument instead of the minor's name.

(b) **Time Allowed for Argument**.

(1) **In General**. Ordinarily a total of thirty minutes will be allowed all appellants and a total of thirty minutes will be allowed all appellees for oral argument. Upon written or oral application of any party, the court for good cause shown may extend the times limited for argument. Among other causes, the existence of adverse interests between multiple appellants or between multiple appellees may be suggested as good cause for such an extension. The court of its own initiative may direct argument on specific points outside the times limited.

Counsel is not obliged to use all the time allowed, and should avoid unnecessary repetition; the court may terminate argument whenever it considers further argument unnecessary.

(2) **Numerous Counsel**. Any number of counsel representing individual appellants or appellees proceeding separately or jointly may be heard in argument within the times herein limited or allowed by order of court. When more than one counsel is heard, duplication or supplementation of argument on the same points shall be avoided unless specifically directed by the court.

(c) **Non-Appearance of Parties**. If counsel for any party fails to appear to present oral argument, the court will hear argument from opposing counsel. If counsel for no party appears, the court will decide the case on the written briefs unless it orders otherwise.

(d) **Argument Conducted by Audio and Video Transmission**. The appellate courts may deviate from traditional in-person oral argument and instead require that oral argument be conducted by audio and video transmission. A party may move the court to conduct oral argument by audio and video transmission but must explain in its motion why the request is being made.

(e) **Unpublished Opinions**.

(1) In order to minimize the cost of publication and of providing storage space for the published reports, the Court of Appeals is

not required to publish an opinion in every decided case. If the panel that hears the case determines that the appeal involves no new legal principles and that an opinion, if published, would have no value as a precedent, it may direct that no opinion be published.

(2) The text of a decision without published opinion shall be posted on the opinions web page of the Court of Appeals at https://appellate.nccourts.org/opinion-filings/coa and reported only by listing the case and the decision in the advance sheets and the bound volumes of the North Carolina Court of Appeals Reports.

(3) An unpublished decision of the North Carolina Court of Appeals does not constitute controlling legal authority. Accordingly, citation of unpublished opinions in briefs, memoranda, and oral arguments in the trial and appellate divisions is disfavored, except for the purpose of establishing claim preclusion, issue preclusion, or the law of the case. If a party believes, nevertheless, that an unpublished opinion has precedential value to a material issue in the case and that there is no published opinion that would serve as well, the party may cite the unpublished opinion if that party serves a copy thereof on all other parties in the case and on the court to which the citation is offered. This service may be accomplished by including the copy of the unpublished opinion in an addendum to a brief or memorandum. A party who cites an unpublished opinion for the first time at a hearing or oral argument must attach a copy of the unpublished opinion relied upon pursuant to the requirements of Rule 28(g). When citing an unpublished opinion, a party must indicate the opinion's unpublished status.

(4) Counsel of record and pro se parties of record may move for publication of an unpublished opinion, citing reasons based on Rule 30(e)(1) and serving a copy of the motion upon all other counsel and pro se parties of record. The motion shall be filed and served within ten days of the filing of the opinion. Any objection to the requested publication by counsel or pro se parties of record must be filed within five days after service of the motion requesting publication. The panel that heard the case shall determine whether to allow or deny such motion.

(f) **Decision of Appeal Without Oral Argument**.

(1) At any time that the Supreme Court concludes that oral argument in any case pending before it will not be of assistance to the Court, it may dispose of the case on the record and briefs.

In those cases, counsel will be notified not to appear for oral argument.

(2) The Chief Judge of the Court of Appeals may from time to time designate a panel to review any pending case, after all briefs are filed but before argument, for decision under this rule. If all of the judges of the panel to which a pending appeal has been referred conclude that oral argument will not be of assistance to the Court, the case may be disposed of on the record and briefs. Counsel will be notified not to appear for oral argument.

(3) By agreement of the parties, a case may be submitted for decision on the written briefs, but the court may nevertheless order oral argument before deciding the case.

History Note.

287 N.C. 671; 288 N.C. 737; 289 N.C. 731; 296 N.C. 743; 303 N.C. 717; 324 N.C. 613; 354 N.C. 609; 355 N.C. 776; 356 N.C. 706; 358 N.C. 829; 359 N.C. 883; 363 N.C. 901; 369 N.C. 763; 371 N.C. 974; 379 N.C. 694.

Rule 31. Petition for Rehearing

(a) **Time for Filing; Content**. A petition for rehearing may be filed in a civil action within fifteen days after the mandate of the court has been issued. The petition shall state with particularity the points of fact or law that, in the opinion of the petitioner, the court has overlooked or misapprehended and shall contain such argument in support of the petition as petitioner desires to present. It shall be accompanied by a certificate of at least two attorneys who for periods of at least five years, respectively, shall have been members of the bar of this State and who have no interest in the subject of the action and have not been counsel for any party to the action, that they have carefully examined the appeal and the authorities cited in the decision, and that they consider the decision in error on points specifically and concisely identified. Oral argument in support of the petition will not be permitted.

(b) **How Addressed; Filed**. A petition for rehearing shall be addressed to the court that issued the opinion sought to be reconsidered.

(c) **How Determined**. Within thirty days after the petition is filed, the court will either grant or deny the petition. A determination to grant or deny will be made solely upon the written petition; no written response will be received from the opposing party, no amicus briefs will be received, and no oral argument will be heard. Determination by the court is final. The rehearing may be granted as to all or fewer than all points suggested in the petition. When the petition is denied, the clerk shall forthwith notify all parties.

(d) **Procedure When Granted**. Upon grant of the petition the clerk shall forthwith notify the parties that the petition has been granted. The case will be

reconsidered solely upon the record on appeal, the petition to rehear, new briefs of both parties, and the oral argument if one has been ordered by the court. The briefs shall be addressed solely to the points specified in the order granting the petition to rehear. The petitioner's brief shall be filed within thirty days after the case is certified for rehearing, and the opposing party's brief, within thirty days after petitioner's brief is served. Filing and service of the new briefs shall be in accordance with the requirements of Rule 13. No reply brief shall be received on rehearing. If the court has ordered oral argument, the clerk shall give notice of the time set therefor, which time shall be not less than thirty days after the filing of the petitioner's brief on rehearing.

(e) **Stay of Execution**. When a petition for rehearing is filed, the petitioner may obtain a stay of execution in the trial court to which the mandate of the appellate court has been issued. The procedure is as provided by Rule 8 of these rules for stays pending appeal.

(f) **Waiver by Appeal from Court of Appeals**. The timely filing of a notice of appeal from, or of a petition for discretionary review of, a determination of the Court of Appeals constitutes a waiver of any right thereafter to petition the Court of Appeals for rehearing as to such determination or, if a petition for rehearing has earlier been filed, an abandonment of such petition.

(g) **No Petition in Criminal Cases**. The courts will not entertain petitions for rehearing in criminal actions.

History Note.

287 N.C. 671; 312 N.C. 803; 322 N.C. 844; 368 N.C. 1067; 324 N.C. 613; 354 N.C. 598; 354 N.C. 609; 363 N.C. 901; 369 N.C. 763; 385 N.C. 918.

Rule 31.1. Motion for En Banc Consideration by Court of Appeals

(a) **When Hearing or Rehearing En Banc May Be Ordered.** A majority of the judges on the Court of Appeals may order that an appeal be heard or reheard by the court en banc. An en banc hearing or rehearing is not favored and ordinarily will not be ordered unless:

(1) en banc consideration is necessary to secure or maintain uniformity of the court's decisions; or

(2) the case involves a question of exceptional importance that must be concisely stated.

(b) **Content.** The motion for en banc consideration shall explain with particularity why en banc consideration is necessary.

(c) **Motions for Initial En Banc Hearing.** At any point after the appellant's brief is filed but no later than fifteen days after the filing of the appellee brief, any party may file a motion for en banc consideration. The motion shall be

accompanied by proof of service upon all other parties. Within ten days after service of the motion, any party may file a response thereto. The filing shall be accompanied by proof of service upon all other parties. The court will rule upon the motion within thirty days after the case is fully briefed and may rule upon it prior to that time. The filing of the motion will not stay the time for briefs to be filed. When a motion for en banc consideration is allowed, the case will be calendared as soon as practicable.

(d) **Motions for En Banc Rehearing.** A motion to rehear any case en banc may be filed within fifteen days after the opinion of the court has been filed. The motion shall be accompanied by proof of service upon all other parties. Within ten days after service of the motion, any party may file a response thereto. The filing shall be accompanied by proof of service upon all other parties. Within thirty days after the motion is filed, the court will either allow or deny the motion. The denial of the motion will trigger the time for taking an appeal of right to the Supreme Court pursuant to N.C.G.S. § 7A-30 and for filing a petition for discretionary review pursuant to Rule 15. If the motion is allowed, the clerk shall forthwith notify the parties that the motion has been granted. The case will be reconsidered solely upon the record on appeal, the motion for en banc rehearing and any responses thereto, new briefs of the parties if requested by the court, and oral argument if the court decides to hear oral argument. Entry of the en banc opinion vacates the original panel opinion.

(e) **Stay of Mandate.** When a motion for en banc rehearing is filed, the movant may obtain a stay of the mandate from the court. The procedure is as provided by Rule 8 of these rules for stays pending appeal.

(f) **Rule 31.1 Motions to Be Heard First.** If a party files both a motion pursuant to this rule for en banc rehearing and a Rule 31 petition for rehearing, the court will rule on the motion for en banc rehearing first. The time for ruling on the Rule 31 petition for rehearing shall commence to run from the date of entry by the Court of Appeals of an order denying the en banc motion.

History Note.

370 N.C. 761.

Rule 32. Mandates of the Courts

(a) **In General**. Unless a court of the appellate division directs that a formal mandate shall issue, the mandate of the court consists of certified copies of its judgment and of its opinion and any direction of its clerk as to costs. The mandate is issued by its transmittal from the clerk of the issuing court to the clerk or comparable officer of the tribunal from which appeal was taken to the issuing court.

(b) **Time of Issuance**. Unless a court orders otherwise, its clerk shall enter judgment and issue the mandate of the court twenty days after the written opinion of the court has been filed with the clerk.

History Note.

287 N.C. 671; 312 N.C. 803; 324 N.C. 613; 354 N.C. 609; 363 N.C. 901; 369 N.C. 763.

Rule 33. Attorneys

(a) **Appearances**. An attorney will not be recognized as appearing in any case unless he or she is entered as counsel of record therein. The signature of an attorney on a record on appeal, motion, brief, or other document permitted by these rules to be filed in a court of the appellate division constitutes entry of the attorney as counsel of record for the parties designated and a certification that the attorney represents such parties. The signature of a member or associate in a firm's name constitutes entry of the firm as counsel of record for the parties designated. Counsel of record may not withdraw from a case except by leave of court. Only those counsel of record who have personally signed the brief prior to oral argument may be heard in argument.

(b) **Signatures on Electronically-Filed Documents**. If more than one attorney is listed as being an attorney for the party or parties on an electronically-filed document, it is the responsibility of the attorney actually filing the document by computer to: (1) list his or her name first on the document, and (2) place on the document under the signature line the following statement: "I certify that all of the attorneys listed below have authorized me to list their names on this document as if they had personally signed it."

(c) **Agreements**. Only those agreements of counsel which appear in the record on appeal or which are filed in the court where an appeal is docketed will be recognized by that court.

(d) **Limited Practice of Out-of-State Attorneys**. Attorneys who are not licensed to practice law in North Carolina, but desire to appear before the appellate courts of North Carolina in a matter shall submit a motion to the appellate court fully complying with the requirements set forth in N.C.G.S. § 84-4.1. This motion shall be filed prior to or contemporaneously with the out-of-state attorney signing and filing any motion, petition, brief, or other document in any appellate court. Failure to comply with this provision may subject the attorney to sanctions and shall result in the document being stricken, unless signed by another attorney licensed to practice in North Carolina. If an attorney is admitted to practice before the Court of Appeals in a matter, the attorney shall be required to file another motion should the case proceed to the Supreme Court. However, if the required fee has been paid to the Court of Appeals, another fee shall not be due at the Supreme Court.

History Note.

287 N.C. 671; 324 N.C. 613; 354 N.C. 598; 354 N.C. 609; 363 N.C. 901.

Rule 33.1. Secure-Leave Periods for Attorneys

(a) **Definition; Entitlement**. A "secure-leave period" is one complete calendar week that is designated by an attorney during which the appellate courts will not hold oral argument in any case in which that attorney is an attorney of record. An attorney is entitled to enjoy a secure-leave period that has been designated according to this rule.

(b) **Allowance**.

(1) Within a calendar year, an attorney may enjoy three different secure-leave periods for any purpose.

(2) Within the twenty-four weeks after the birth or adoption of an attorney's child, that attorney may enjoy twelve additional secure-leave periods for the purpose of caring for the child.

(c) **How to Submit Designation**. An attorney must submit his or her designation of a secure-leave period using the electronic filing site of the appellate courts at https://www.ncappellatecourts.org.

(d) **When to Submit Designation**. An attorney must submit his or her designation of a secure-leave period:

(1) at least ninety days before the secure-leave period begins; and

(2) before oral argument in any of the attorney's cases is scheduled for a time that conflicts with the secure-leave period.

But because of the uncertainty of a child's birth or adoption date, the Supreme Court and the Court of Appeals will make reasonable exception to these requirements so that an attorney may enjoy leave with the child.

History Note.

350 N.C. 859; 354 N.C. 609; 363 N.C. 901; 369 N.C. 763; 370 N.C. 763; 372 N.C. 902.

Rule 34. Frivolous Appeals; Sanctions

(a) A court of the appellate division may, on its own initiative or motion of a party, impose a sanction against a party or attorney or both when the court determines that an appeal or any proceeding in an appeal was frivolous because of one or more of the following:

(1) the appeal was not well-grounded in fact and was not warranted by existing law or a good faith argument for the extension, modification, or reversal of existing law;

(2) the appeal was taken or continued for an improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation;

(3) a petition, motion, brief, record, or other item filed in the appeal was grossly lacking in the requirements of propriety, grossly violated appellate court rules, or grossly disregarded the requirements of a fair presentation of the issues to the appellate court.

(b) A court of the appellate division may impose one or more of the following sanctions:

(1) dismissal of the appeal;

(2) monetary damages including, but not limited to,

a. single or double costs,

b. damages occasioned by delay,

c. reasonable expenses, including reasonable attorney fees, incurred because of the frivolous appeal or proceeding;

(3) any other sanction deemed just and proper.

(c) A court of the appellate division may remand the case to the trial division for a hearing to determine one or more of the sanctions under subdivisions (b)(2) or (b)(3) of this rule.

(d) If a court of the appellate division remands the case to the trial division for a hearing to determine a sanction under subsection (c) of this rule, the person subject to sanction shall be entitled to be heard on that determination in the trial division.

History Note.

287 N.C. 671; 368 N.C. 1067; 324 N.C. 613; 350 N.C. 858; 354 N.C. 609; 363 N.C. 901; 379 N.C. 694.

Rule 35. Costs

(a) **To Whom Allowed**. Except as otherwise provided by law, if an appeal is dismissed, costs shall be taxed against the appellant unless otherwise agreed by the parties or ordered by the court; if a judgment is affirmed, costs shall be taxed against the appellant unless otherwise ordered by the court; if a judgment is reversed, costs shall be taxed against the appellee unless otherwise ordered; if a judgment is affirmed in part, reversed in part, or modified in any way, costs shall be allowed as directed by the court.

(b) **Direction as to Costs in Mandate**. The clerk shall include in the mandate of the court an itemized statement of costs taxed in the appellate court and a designation of the party against whom such costs are taxed.

(c) **Costs of Appeal Taxable in Trial Tribunals**. Any costs of an appeal that are assessable in the trial tribunal shall, upon receipt of the mandate, be taxed as directed therein and may be collected by execution of the trial tribunal.

(d) **Execution to Collect Costs in Appellate Courts**. Costs taxed in the courts of the appellate division may be made the subject of execution issuing from the court where taxed. Such execution may be directed by the clerk of the court to the proper officers of any county of the state; may be issued at any time after the mandate of the court has been issued; and may be made returnable on any day named. Any officer to whom such execution is directed is subject to the penalties prescribed by law for failure to make due and proper return.

History Note.

287 N.C. 671; 324 N.C. 613; 354 N.C. 609; 363 N.C. 901; 369 N.C. 763.

Rule 36. Trial Judges Authorized to Enter Orders Under These Rules

(a) **When Particular Judge Not Specified by Rule**. When by these rules a trial court or a judge thereof is permitted or required to enter an order or to take some other judicial action with respect to a pending appeal and the rule does not specify the particular judge with authority to do so, the following judges of the respective courts have such authority with respect to causes docketed in their respective divisions:

(1) **Superior Court**. The judge who entered the judgment, order, or other determination from which appeal was taken, and any regular or special superior court judge resident in the district or assigned to hold court in the district wherein the cause is docketed;

(2) **District Court**. The judge who entered the judgment, order, or other determination from which appeal was taken; the chief district court judge of the district wherein the cause is docketed; and any judge designated by such chief district court judge to enter interlocutory orders under N.C.G.S. § 7A-192.

(b) **Upon Death, Incapacity, Retirement, or Absence of Particular Judge Authorized**. When by these rules the authority to enter an order or to take other judicial action is limited to a particular judge and that judge is unavailable by reason of death, mental or physical incapacity, retirement, or absence from the state, the Chief Justice will, upon motion of any party, designate another judge to act in the matter. Such designation will be by order entered *ex parte*, copies of which will be

mailed forthwith by the clerk of the Supreme Court to the judge designated and to all parties.

History Note.

287 N.C. 671; 324 N.C. 613; 354 N.C. 609; 363 N.C. 901; 369 N.C. 763; Order Dated 20 August 2025.

Rule 37. Motions in Appellate Courts

(a) **Time; Content of Motions; Response**. An application to a court of the appellate division for an order or for other relief available under these rules may be made by filing a motion for such order or other relief with the clerk of the court, with service on all other parties. Unless another time is expressly provided by these rules, the motion may be filed and served at any time before the case is called for oral argument. The motion shall contain or be accompanied by any matter required by a specific provision of these rules governing such a motion and shall state with particularity the grounds on which it is based and the order or relief sought. If a motion is supported by affidavits, briefs, or other items, these shall be served and filed with the motion. Within ten days after a motion is served or until the appeal is called for oral argument, whichever period is shorter, a party may file and serve copies of a response in opposition to the motion, which may be supported by affidavits, briefs, or other items in the same manner as motions. The court may shorten or extend the time for responding to any motion.

(b) **Determination**. Notwithstanding the provisions of Rule 37(a), a motion may be acted upon at any time, despite the absence of notice to all parties and without awaiting a response thereto. A party who has not received actual notice of such a motion, or who has not filed a response at the time such action is taken, and who is adversely affected by the action may request reconsideration, vacation, or modification thereof. Motions will be determined without argument, unless the court orders otherwise.

(c) **Notification and Consent**. In cases where all parties are represented by counsel, motions should contain a statement by counsel reporting counsel's good-faith effort to inform counsel for all other parties of the intended filing of the motion. The statement should indicate (i) whether the other parties consent to the relief being sought and (ii) whether any other party intends to file a response.

(d) **Withdrawal of Appeal in Criminal Cases**. Withdrawal of appeal in criminal cases shall be in accordance with N.C.G.S. § 15A-1450. In addition to the requirements of N.C.G.S. § 15A-1450, after the record on appeal in a criminal case has been filed in an appellate court but before the filing of an opinion, the defendant shall also file a written notice of the withdrawal with the clerk of the appropriate appellate court.

(e) **Withdrawal of Appeal in Civil Cases**.

(1) Prior to the filing of a record on appeal in the appellate court, an appellant or cross-appellant may, without the consent of the other party, file a notice of withdrawal of its appeal with the tribunal from which appeal has been taken. Alternatively, prior to the filing of a record on appeal, the parties may file a signed stipulation agreeing to dismiss the appeal with the tribunal from which the appeal has been taken.

(2) After the record on appeal has been filed, an appellant or cross-appellant or all parties jointly may move the appellate court in which the appeal is pending, prior to the filing of an opinion, for dismissal of the appeal. The motion must specify the reasons therefor, the positions of all parties on the motion to dismiss, and the positions of all parties on the allocation of taxed costs. The appeal may be dismissed by order upon such terms as agreed to by the parties or as fixed by the appellate court.

(f) **Effect of Withdrawal of Appeal**. The withdrawal of an appeal shall not affect the right of any other party to file or continue such party's appeal or cross-appeal.

History Note.

287 N.C. 671; 324 N.C. 613; 354 N.C. 609; 358 N.C. 829; 361 N.C. 732; 363 N.C. 901; 369 N.C. 763; 371 N.C. 974; 379 N.C. 694.

Editor's Note.

The Supreme Court's procedure for deciding motions filed under Rule 37 that seek the recusal or disqualification of a justice was announced in an administrative order dated 23 December 2021, 379 N.C. 693.

Rule 38. Substitution of Parties

(a) **Death of a Party**. No action abates by reason of the death of a party while an appeal may be taken or is pending, if the cause of action survives. If a party acting in an individual capacity dies after appeal is taken from any tribunal, the personal representative of the deceased party in a personal action, or the successor in interest of the deceased party in a real action may be substituted as a party on motion filed by the representative or the successor in interest or by any other party with the clerk of the court in which the action is then docketed. A motion to substitute made by a party shall be served upon the personal representative or successor in interest in addition to all other parties. If such a deceased party in a personal action has no personal representative, any party may in writing notify the court of the death, and the court in which the action is then docketed shall direct the proceedings to be had in order to substitute a personal representative.

If a party against whom an appeal may be taken dies after entry of a judgment or order but before appeal is taken, any party entitled to appeal therefrom may proceed as appellant as if death had not occurred; and after appeal is taken, substitution may then be effected in accordance with this subdivision. If a party entitled to appeal dies before filing a notice of appeal, appeal may be taken by the personal representative, or, if there is no personal representative, by the attorney of record within the time and in the manner prescribed in these rules; and after appeal is taken, substitution may then be effected in accordance with this rule.

(b) **Substitution for Other Causes**. If substitution of a party to an appeal is necessary for any reason other than death, substitution shall be effected in accordance with the procedure prescribed in subsection (a).

(c) **Public Officers; Death or Separation from Office**. When a person is a party to an appeal in an official or representative capacity and during its pendency dies, resigns, or otherwise ceases to hold office, the action does not abate and the person's successor is automatically substituted as a party. Prior to the qualification of a successor, the attorney of record for the former party may take any action required by these rules. An order of substitution may be made, but neither failure to enter such an order nor any misnomer in the name of a substituted party shall affect the substitution unless it be shown that the same affected the substantial rights of a party.

History Note.

287 N.C. 671; 324 N.C. 613; 354 N.C. 609; 363 N.C. 901; 369 N.C. 763.

Rule 39. Duties of Clerks; When Offices Open

(a) **General Provisions**. The clerks of the courts of the appellate division shall take the oaths and give the bonds required by law. The courts shall be deemed always open for the purpose of filing any proper item and of making motions and issuing orders. The offices of the clerks with the clerks or deputies in attendance shall be open during business hours on all days except Saturdays, Sundays, and legal holidays, but the respective courts may provide by order that the offices of their clerks shall be open for specified hours on Saturdays or on particular legal holidays or shall be closed on particular business days.

(b) **Records to Be Kept**. The clerk of each of the courts of the appellate division shall keep and maintain the records of that court on paper, microfilm, or electronic media, or any combination thereof. The records kept by the clerk shall include indexed listings of all cases docketed in that court, whether by appeal, petition, or motion, and a notation of the dispositions attendant thereto; a listing of final judgments on appeals before the court, indexed by title, docket number, and parties, containing a brief memorandum of the judgment of the court and the party against whom costs were adjudicated; and records of the proceedings and ceremonies of the court.

History Note.

287 N.C. 671; 368 N.C. 1067; 324 N.C. 613; 354 N.C. 609; 363 N.C. 901; 369 N.C. 763; 379 N.C. 694.

Rule 40. Consolidation of Actions on Appeal

Two or more actions that involve common issues of law may be consolidated for hearing upon motion of a party to any of the actions made to the appellate court wherein all are docketed, or upon the initiative of that court. Actions so consolidated will be calendared and heard as a single case. Upon consolidation, the parties may set the course of argument, within the times permitted by Rule 30(b), by written agreement filed with the court prior to oral argument. This agreement shall control unless modified by the court.

History Note.

287 N.C. 671; 324 N.C. 613; 354 N.C. 598; 354 N.C. 609; 363 N.C. 901; 369 N.C. 763.

Rule 41. Appeal Information Statement

The appellant must complete an Appeal Information Statement using the electronic-filing site at https://www.ncappellatecourts.org before the appellant's brief is filed.

History Note.

287 N.C. 671; 324 N.C. 613; 368 N.C. 1067; 354 N.C. 609; 358 N.C. 829; 363 N.C. 901; 369 N.C. 763; 371 N.C. 974.

Editor's Note.

Former Rule 41, "Title," was renumbered as Rule 42 on 3 March 1994, 368 N.C. 1067, and then later recodified as Rule 1(a) on 2 July 2009, 363 N.C. 901.

Rule 42. Protecting Identities—Sealed Items and Identification Numbers

(a) **Items Sealed in the Trial Tribunal**. Items sealed in the trial tribunal remain under seal in the appellate courts. When these items are filed with the appellate courts, counsel must attach a copy of the order, statute, or other legal authority that sealed the item below.

(b) **Items Sealed by Operation of Rule**. By virtue of this subsection, items filed with the appellate courts are under seal in the following matters:

(1) Appeals filed under N.C.G.S. § 7B-1001;

(2) Appeals filed under N.C.G.S. § 7B-2602;

(3) Appeals filed under N.C.G.S. § 7A-27 that involve a sexual offense committed against a minor; and

(4) Cases in which the right to appeal under one of these statutes has been lost.

In briefs, motions, and petitions filed in these matters, counsel must use initials or a pseudonym instead of the minor's name. Counsel for each party must agree on the initials or pseudonym and must include a stipulation that evidences this agreement in the record on appeal.

(c) **Items Sealed by the Appellate Courts**. If an item was not sealed in the trial tribunal or by operation of rule, then counsel may move the appellate court to seal that item. Items subject to a motion to seal will be held under seal pending the appellate court's disposition of the motion.

(d) **Labeling Sealed Items**. Documents filed with the appellate courts that are under seal must display at the top of the first page this notice:

UNDER SEAL AND SUBJECT TO PUBLIC INSPECTION ONLY
BY ORDER OF A COURT OF THE APPELLATE DIVISION

If the document under seal is included within another document, then this notice must also be displayed at the top of the first page of that other document. Non-documentary items filed with the appellate courts that are under seal must be submitted in an envelope or box that displays the same notice.

(e) **Identification Numbers**. Driver license numbers, financial account numbers, social security numbers, and tax identification numbers must be excluded or redacted from all documents that are filed with the appellate courts unless the number is necessary to the disposition of the appeal. If the number is necessary to the disposition of the appeal, then counsel may move to seal the documents in which the number appears.

History Note.

368 N.C. 1067; 354 N.C. 598; 354 N.C. 609; 363 N.C. 901; 369 N.C. 763; 371 N.C. 974.

Editor's Note.

Former Rule 41, "Title," was renumbered as Rule 42 on 3 March 1994, 368 N.C. 1067, and then later recodified as Rule 1(a) on 2 July 2009, 363 N.C. 901.

Appendixes to the North Carolina Rules of Appellate Procedure

Appendix A. Timetables for Appeals

Timetable of Appeals from Trial Division and Administrative Tribunals Under Articles II and IV of the Rules of Appellate Procedure

Action	*Time (Days)*	*From date of*	*Rule Ref.*
Taking Appeal (Civil)	30	Entry of Judgment (Unless Tolled)	3(c)
Cross-Appeal	10	Service and Filing of a Timely Notice of Appeal	3(c)
Taking Appeal (Administrative Tribunal)	30	Receipt of Final Administrative Tribunal Decision (Unless Statutes Provide Otherwise)	18(b)(2)
Taking Appeal (Criminal)	14	Entry of Judgment (Unless Tolled)	4(a)
Serving Transcript Contract (Appellant)	14	Filing or Giving Notice of Appeal	7(b)(2) 18(b)(3)
Serving Transcript Contract (Appellee)	28	Appellant Filing or Giving Notice of Appeal	7(b)(2) 18(b)(3)
Serving Appellate Entries (Clerk of Superior Court)	14	Judge Signing Appellate Entries	7(c)(2)
Delivering Transcript		Service of Transcript Contract or Appellate Entries	7(e)(1)
(General Rule)	90		
(Capitally Tried Cases)	180		
(Undisciplined or Delinquent Juvenile Cases)	60		
(Special Proceedings about the Admission or Discharge of Clients)	60		

Serving Proposed Record on Appeal (General Rule)	45	All Transcripts Being Delivered or Notice of Appeal, Whichever is Later	11(b) 18(d)
Serving Proposed Record on Appeal (Capitally Tried Cases)	70	All Transcripts Being Delivered	11(b)
Serving Objections or Proposed Alternative Record on Appeal (General Rule) (Capitally Tried Cases)	 30 35	Service of Proposed Record	11(c) 18(d)(2)
Requesting Judicial Settlement of Record	10	Expiration of the Last Day Within Which an Appellee Who Has Been Served Could Serve Objections, etc.	11(c) 18(d)(3)
Judicial Settlement of Record	20	Service on Judge of Request for Settlement	11(c) 18(d)(3)
Filing Record on Appeal in Appellate Court	15	Settlement of Record on Appeal	12(a)
Filing Appellant's Brief (or Mailing Brief Under Rule 26(a))	30	Filing the Record on Appeal in Appellate Court (60 Days in Death Cases)	13(a)
Filing Appellee's Brief (or Mailing Brief Under Rule 26(a))	30	Service of Appellant's Brief (60 Days in Death Cases)	13(a)
Filing Appellant's Reply Brief (or Mailing Brief Under Rule 26(a))	14	Service of Appellee's Brief	28(h)
Oral Argument	30	Filing Appellant's Brief (Usual Minimum Time)	29
Certification or Mandate	20	Issuance of Opinion	32
Petition for Rehearing (Civil Action Only)	15	Mandate	31(a)

Timetable of Appeals from Trial Division Under Article II, Rule 3.1, of the Rules of Appellate Procedure

Action	*Time (Days)*	*From date of*	*Rule Ref.*
Taking Appeal	30	Entry of Judgment	3.1(b); N.C.G.S. § 7B-1001
Notifying Court Reporting Manager	1 (Business)	Filing Notice of Appeal	3.1(c)
Assigning Transcriptionist	5 (Business)	Completion of Expedited Juvenile Appeals Form	3.1(c)
Delivering a Transcript of the Proceedings	40	Assignment by Court Reporting Manager	3.1(c)
Serving Proposed Record on Appeal	15	Delivery of Transcript	3.1(d)
Serving Notice of Approval, Specific Objections or Amendments, or Proposed Alternative Record on Appeal	10	Service of Proposed Record on Appeal	3.1(d)
Requesting Judicial Settlement of Record	10	Expiration of the Last Day Within Which an Appellee Who Has Been Served Could Serve Objections, etc.	3.1(d); 11(c)
Judicial Settlement of Record	20	Service on Judge of Request for Settlement	3.1(d); 11(c)
Filing Record on Appeal in Appellate Court	5 (Business)	Settlement of Record on Appeal	3.1(d)
Filing Appellant's Brief	30	Filing of Record on Appeal	13(a)(1)
Filing Appellee's Brief	30	Service of Appellant's Brief	13(a)(1)
Filing Appellant's Reply Brief (or Mailing Brief Under Rule 26(a))	14	Service of Appellee's Brief	13(a)(1); 28(h)

Timetable of Appeals to the Supreme Court from the Court of Appeals Under Article III of the Rules of Appellate Procedure

Action	*Time (Days)*	*From date of*	*Rule Ref.*
Petition for Discretionary Review Prior to Determination	15	Docketing Appeal in Court of Appeals	15(b)
Notice of Appeal and/or Petition for Discretionary Review	15	Mandate of Court of Appeals (or From Order of Court of Appeals Denying Petition for Rehearing)	14(a) 15(b)
Cross-Notice of Appeal	10	Filing of First Notice of Appeal	14(a)
Response to Petition for Discretionary Review	10	Service of Petition	15(d)
Filing Appellant's Brief (or Mailing Brief Under Rule 26(a))	30	Order Retaining Appeal Certification of Review	14(d) 15(g)(2)
Filing Appellee's Brief (or Mailing Brief Under Rule 26(a))	30	Service of Appellant's Brief	14(d) 15(g)
Filing Appellant's Reply Brief (or Mailing Brief Under Rule 26(a))	14	Service of Appellee's Brief	28(h)
Oral Argument	30	Filing Appellee's Brief (Usual Minimum Time)	29
Certification or Mandate	20	Issuance of Opinion	32
Petition for Rehearing (Civil Action Only)	15	Mandate	31(a)

All of the critical time intervals outlined here except those for taking an appeal, petitioning for discretionary review, responding to a petition for discretionary review, or petitioning for rehearing may be extended by order of the court in which the appeal is docketed at the time. Note that Rule 27 authorizes the trial tribunal to grant only one extension of time for the delivery of a transcript. Note also that Rule 27

authorizes the trial tribunal to grant only one extension of time for service of the proposed record. All other motions for extension of the times provided in these rules must be filed with the appellate court to which the appeal of right lies.

No time limits are prescribed for petitions for writs of certiorari other than that they be "filed without unreasonable delay." (Rule 21(c)).

History Note.

287 N.C. 671; 306 N.C. 757; 314 N.C. 683; 324 N.C. 585; 324 N.C. 613; 327 N.C. 671; 345 N.C. 765; 354 N.C. 598; 354 N.C. 609; 357 N.C. 665; 359 N.C. 883; 363 N.C. 901; 369 N.C. 763; 371 N.C. 974; 375 N.C. 1034; Order Dated 19 March 2025.

Editor's Note.

The former "Appendix of Tables and Forms," 287 N.C. 671, was repealed and replaced with Appendixes A through F on 7 December 1982, 306 N.C. 757.

Appendix B. Format and Style

Documents composed for an appeal and presented to either appellate court for filing shall be formatted and styled as described in this appendix.

GENERAL REQUIREMENTS

Documents shall be letter size (8½ x 11"). Documents shall be prepared using a proportionally spaced font with serifs that is no smaller than 12-point and no larger than 14-point in size. Examples of proportionally spaced fonts with serifs include, but are not limited to, Constantia, Century, Century Schoolbook, and Century Old Style typeface. To allow for binding of documents, a margin of approximately one inch shall be left on all sides of the page. The formatted page should be approximately 6½ inches wide and 9 inches long. Tabs are located at the following distances from the left margin: ½", 1", 1½", 2", 4¼" (center), and 5".

CAPTIONS OF DOCUMENTS

Documents shall be headed by a caption. The caption contains: the number to be assigned the case by the clerk; the Judicial District from which the case arises; the appellate court to whose attention the document is addressed; the style of the case showing the names of all parties to the action, except as provided by Rule 42; the county from which the case comes; the indictment or docket numbers of the case below (in records on appeal and in motions and petitions in the cause filed prior to the filing of the record); and the title of the document. The caption shall be placed beginning at the top margin of a cover page and again on the first textual page of the document.

No. _____ (Number) DISTRICT

(SUPREME COURT OF NORTH CAROLINA)
(or)
(NORTH CAROLINA COURT OF APPEALS)

****

STATE OF NORTH CAROLINA	)	
or	)	
(Name of Plaintiff)	)	From (Name) County
	)	
v	)	No. _____
	)	
(Name of Defendant)	)	

****

(TITLE OF DOCUMENT)

****

The caption should reflect the title of the action (all parties named except as provided by Rule 42) as it appeared in the trial division. The appellant or petitioner is not automatically given topside billing; the relative positions of the plaintiff and defendant should be retained.

The caption of a component of the record on appeal and of a notice of appeal from the trial division should include directly below the name of the county, the indictment or docket numbers of the case in the trial division. Those numbers, however, should not be included in other documents, except a petition for writ of certiorari or other petitions and motions in which no record on appeal has yet been created in the case. In notices of appeal or petitions to the Supreme Court from decisions of the Court of Appeals, the caption should show the Court of Appeals docket number in similar fashion.

Immediately below the caption of each document, centered and underlined, in all capital letters, should be the title of the document, e.g., PETITION FOR DISCRETIONARY REVIEW UNDER N.C.G.S. § 7A-31, or DEFENDANT-APPELLANT'S BRIEF. A brief filed in the Supreme Court in a case previously heard and decided by the Court of Appeals is entitled NEW BRIEF.

INDEXES

A brief or petition that is ten pages or more in length and all appendixes to briefs (Rule 28) must contain an index to the contents.

The index should be indented approximately ¾" from each margin, providing a 5" line. The form of the index for a printed record should be as follows (indexes for briefs are addressed in Appendix E):

(Printed Record)

INDEX

Organization of the Court 1
Complaint of Tri-Cities Mfg. 1

* * *

*PLAINTIFF'S EVIDENCE:
John Smith 17
Tom Jones 23
Defendant's Motion for Nonsuit 84

*DEFENDANT'S EVIDENCE:
John Q. Public 86
Mary J. Public 92
Request for Jury Instructions 101
Charge to the Jury 101
Jury Verdict 102
Order or Judgment 108

Appeal Entries 109
Order Extending Time 111
Proposed Issues on Appeal 113
Certificate of Service 114
Stipulation of Counsel 115
Names and Addresses of Counsel 116

USE OF THE TRANSCRIPT OF EVIDENCE WITH RECORD ON APPEAL

Those portions of the printed record that correspond to the items asterisked (*) in the sample index above would be omitted if the transcript option were selected under Rule 9(c). In their place, counsel should insert a statement in substantially the following form:

> "Per Rule 9(c) of the Rules of Appellate Procedure, the transcript of proceedings in this case, taken by (name), transcriptionist, from (date) to (date) and consisting of (# of volumes) volumes and (# of pages) pages, numbered (1) through (last page #), is filed pursuant to Rule 12."

Entire transcripts should not be inserted into the printed record. Transcript pages inserted into the printed record will be treated as a narration and will be printed at the standard page charge. Counsel should note that transcripts will not be reproduced with the printed record but will be treated and used as an exhibit.

TABLE OF CASES AND AUTHORITIES

Immediately following the index and before the inside caption, all briefs, petitions, and motions that are ten pages or greater in length shall contain a table of cases and authorities. Cases should be arranged alphabetically, followed by constitutional provisions, statutes, regulations, and other textbooks and authorities. The format should be similar to that of the index. Citations should be made according to the most recent edition of *The Bluebook: A Uniform System of Citation*. Citations to regional reporters shall include parallel citations to official state reporters.

FORMAT OF BODY OF DOCUMENT

Paragraphs within the body of the printed record should be single-spaced, with double spaces between paragraphs. The body of petitions, notices of appeal, responses, motions, and briefs should be double-spaced, with captions, headings, issues, and long quotes single-spaced.

Adherence to the margins is important because the document will be reproduced front and back and will be bound on the side. No part of the text should be obscured by that binding.

Quotations of more than three lines in length should be indented ¾" from each margin and should be single-spaced. The citation should immediately follow the quote.

References to the record on appeal should be made using a parenthetical in the text: (R pp 38-40). References to the transcript, if used, should be made in a similar manner: (T p 558, line 21).

TOPICAL HEADINGS

The various sections of the brief or petition should be separated (and indexed) by topical headings, centered and underlined, in all capital letters.

Within the argument section, the issues presented should be set out as a heading in all capital letters and in paragraph format from margin to margin. Sub-issues should be presented in similar format, but block indented ½" from the left margin.

NUMBERING PAGES

The cover page containing the caption of the document (and the index in records on appeal) is unnumbered. The index and table of cases and authorities are on pages numbered with lowercase Roman numerals, e.g., i, ii, iv.

While the page containing the inside caption and the beginning of the substance of the petition or brief bears no number, it is page 1. Subsequent pages are sequentially numbered by Arabic numbers, flanked by dashes, at the center of the top margin of the page, e.g., -4-.

An appendix to the brief should be separately numbered in the manner of a brief.

SIGNATURE AND ADDRESS

Unless filed pro se, documents filed in a case will bear the signature of at least one counsel participating in the case, as in the example below. The name, address, telephone number, State Bar number, and e-mail address of the person signing, together with the capacity in which that person signs the document, will be included. When counsel or the firm is retained, the firm name should be included above the signature; however, if counsel is appointed in an indigent criminal appeal, only the name of the appointed counsel should appear, without identification of any firm affiliation. Counsel participating in argument must have signed the brief in the case prior to that argument.

(Retained) [LAW FIRM NAME]
By: _____
[Name]
By: _____
[Name]
Attorneys for Plaintiff-Appellants
P. O. Box 0000
Raleigh, NC 27600

(919) 999-9999
State Bar No. _____
[e-mail address]

(Appointed) _____
[Name]
Attorney for Defendant-Appellant
P. O. Box 0000
Raleigh, NC 27600
(919) 999-9999
State Bar No. _____
[e-mail address]

History Note.

287 N.C. 671; 306 N.C. 757; 324 N.C. 585; 324 N.C. 613; 354 N.C. 598; 354 N.C. 609; 356 N.C. 702; 356 N.C. 706; 358 N.C. 824; 359 N.C. 883; 363 N.C. 901; 369 N.C. 763; 371 N.C. 974; 375 N.C. 1034; 379 N.C. 694.

Editor's Note.

The former "Appendix of Tables and Forms," 287 N.C. 671, was repealed and replaced with Appendixes A through F on 7 December 1982, 306 N.C. 757.

Appendix C. [Reserved]

History Note.

287 N.C. 671; 306 N.C. 757; 324 N.C. 585; 324 N.C. 613; 327 N.C. 671; 354 N.C. 598; 354 N.C. 609; 363 N.C. 901; 369 N.C. 763; 379 N.C. 694.

Editor's Note.

The former "Appendix of Tables and Forms," 287 N.C. 671, was repealed and replaced with Appendixes A through F on 7 December 1982, 306 N.C. 757.

Appendix D. Forms

Captions for all documents filed in the appellate division should be in the format prescribed by Appendix B, addressed to the Court whose review is sought.

NOTICES OF APPEAL

(1) To Court of Appeals from Trial Division

Appropriate in all appeals of right from district or superior court except appeals from criminal judgments imposing sentences of death.

(Caption)

****

TO THE HONORABLE COURT OF APPEALS OF NORTH CAROLINA:

(Plaintiff)(Defendant), (Name of Party), hereby gives notice of appeal to the Court of Appeals of North Carolina (from the final judgment)(from the order) entered on (date) in (District)(Superior) Court, _____ County, (describing it).

Respectfully submitted this the __ day of _____, 2___.

s/_____
Attorney for (Plaintiff)(Defendant)-Appellant
(Address, Telephone Number, State Bar Number, and E-mail Address)

(2) To Supreme Court from a Judgment of the Superior Court Including a Sentence of Death

(Caption)

****

TO THE HONORABLE SUPREME COURT OF NORTH CAROLINA:

(Name of Defendant), Defendant, hereby gives notice of appeal to the Supreme Court of North Carolina from the final judgment entered by (name of Judge) in Superior Court, _____ County, on (date), which judgment included a conviction of murder in the first degree and a sentence of death.

Respectfully submitted this the __ day of _____, 2___.

s/_____
Attorney for Defendant-Appellant
(Address, Telephone Number, State Bar Number, and E-mail Address)

(3) To Supreme Court from a Judgment of the Court of Appeals

Appropriate in all appeals taken as of right from opinions and judgments of the Court of Appeals to the Supreme Court under N.C.G.S. § 7A-30. The appealing party shall enclose a clear copy of the opinion of the Court of Appeals with the notice. To take account of the possibility that the Supreme Court may determine that the appeal does not lie of right, an alternative petition for discretionary review may be filed with the notice of appeal.

(Caption)

****

TO THE HONORABLE SUPREME COURT OF NORTH CAROLINA:

(Plaintiff)(Defendant), (Name of Party), hereby appeals to the Supreme Court of North Carolina from the judgment of the Court of Appeals (describe it), which judgment directly involves a substantial question arising under the Constitution(s) (of the United States)(and)(or)(of the State of North Carolina) as follows:

(Here describe the specific issues, citing constitutional provisions under which they arise and showing how such issues were timely raised below and are set out in the record of appeal, e.g.:

Issue 1: Said judgment directly involves a substantial question arising under the Fourth and Fourteenth Amendments to the Constitution of the United States and under Article 1, Section 20 of the Constitution of the State of North Carolina, in that it deprives rights secured thereunder to the defendant by overruling defendant's challenge to the denial of (his)(her) Motion to Suppress Evidence Obtained by a Search Warrant, thereby depriving defendant of the constitutional right to be secure in his or her person, house, papers, and effects against unreasonable searches and seizures and violating constitutional prohibitions against warrants issued without probable cause and warrants not supported by evidence. This constitutional issue was timely raised in the trial tribunal by defendant's Motion to Suppress Evidence Obtained by a Search Warrant made prior to trial of defendant (R pp 7–10). This constitutional issue was determined erroneously by the Court of Appeals.)

In the event the Court finds this constitutional question to be substantial, petitioner intends to present the following issues in its brief for review:

(Here list all issues to be presented in appellant's brief to the Supreme Court, not limited to those which are the basis of the constitutional question claim. An issue may not be briefed if it is not listed in the notice of appeal.)

Respectfully submitted this the __ day of _____, 2___.

s/_____
Attorney for (Plaintiff)(Defendant)-Appellant

(Address, Telephone Number, State Bar Number, and E-mail Address)

PETITION FOR DISCRETIONARY REVIEW UNDER N.C.G.S. § 7A-31

To seek review of the opinion and judgment of the Court of Appeals when petitioner contends the case involves issues of public interest or jurisprudential significance. May also be filed as a separate document in conjunction with a notice of appeal to the Supreme Court when the appellant contends that such appeal lies of right due to substantial constitutional questions under N.C.G.S. § 7A-30, but desires to have the Court consider discretionary review should it determine that appeal does not lie of right in the particular case.

(Caption)

****

TO THE HONORABLE SUPREME COURT OF NORTH CAROLINA:

(Plaintiff)(Defendant), (Name of Party), respectfully petitions the Supreme Court of North Carolina to certify for discretionary review the judgment of the Court of Appeals (describing it) on the basis that (here set out the grounds from N.C.G.S. § 7A-31 that provide the basis for the petition). In support of this petition, (Plaintiff)(Defendant) shows the following:

Facts

(Here state first the procedural history of the case through the trial division and the Court of Appeals. Then set out factual background necessary for understanding the basis of the petition.)

Reasons Why Certification Should Issue

(Here set out factual and legal arguments to justify certification of the case for full review. While some substantive argument will certainly be helpful, the focus of the argument in the petition should show how the opinion of the Court of Appeals conflicts with prior decisions of the Supreme Court or how the case is significant to the jurisprudence of the State or of significant public interest. If the Court is persuaded to take the case, the appellant may deal thoroughly with the substantive issues in the new brief.)

Issues to Be Briefed

In the event the Court allows this petition for discretionary review, petitioner intends to present the following issues in its brief for review:

(Here list all issues to be presented in appellant's brief to the Supreme Court, not limited to those that are the basis of the petition. An issue may not be briefed if it is not listed in the petition.)

Respectfully submitted this the __ day of _____, 2___.

s/_____

Attorney for (Plaintiff)(Defendant)-Appellant
(Address, Telephone Number, State Bar Number, and E-mail Address)

Attached to the petition shall be a certificate of service upon the opposing parties and a clear copy of the opinion of the Court of Appeals in the case.

PETITION FOR WRIT OF CERTIORARI

To seek review: (1) by the appropriate appellate court of judgments or orders of trial tribunals when the right to prosecute an appeal has been lost or when no right to appeal exists; and (2) by the Supreme Court of decisions and orders of the Court of Appeals when no right to appeal or to petition for discretionary review exists or when such right has been lost by failure to take timely action.

(Caption)

****

TO THE HONORABLE (SUPREME COURT)(COURT OF APPEALS) OF NORTH CAROLINA:

(Plaintiff)(Defendant), (Name of Party), respectfully petitions this Court to issue its writ of certiorari pursuant to Rule 21 of the Rules of Appellate Procedure to review the (judgment)(order)(decree) of the [Honorable (name), Judge Presiding, (Superior)(District) Court, _____ County][North Carolina Court of Appeals], dated (date), (here describe the judgment, order, or decree appealed from), and in support of this petition shows the following:

Facts

(Here set out factual background necessary for understanding the basis of the petition: e.g., failure to perfect appeal by reason of circumstances constituting excusable neglect; non-appealability of right of an interlocutory order, etc.) (If circumstances are that transcript could not be procured from court reporter, statement should include estimate of date of availability and supporting affidavit from the court reporter.)

Reasons Why Writ Should Issue

(Here set out factual and legal arguments to justify issuance of writ: e.g., reasons why interlocutory order makes it impracticable for petitioner to proceed further in trial court; meritorious basis of petitioner's proposed issues, etc.)

Attachments

Attached to this petition for consideration by the Court are certified copies of the (judgment)(order)(decree) sought to be reviewed, and (here list any other certified items from the trial court record and any affidavits attached as pertinent to consideration of the petition).

Wherefore, petitioner respectfully prays that this Court issue its writ of certiorari to the [(Superior)(District) Court, _____ County][North Carolina Court of Appeals] to permit review of the (judgment)(order)(decree) above specified, upon issues stated as follows: (here list the issues, in the manner provided for in the petition for discretionary review); and that the petitioner have such other relief as to the Court may seem proper.

Respectfully submitted this the __ day of _____, 2___.

s/_____
Attorney for Petitioner
(Address, Telephone Number, State Bar Number, and E-mail Address)

(Verification by petitioner or counsel)

(Certificate of service upon opposing parties)

(Attach a clear copy of the opinion, order, etc. which is the subject of the petition and other attachments as described in the petition.)

PETITION FOR WRIT OF SUPERSEDEAS UNDER RULE 23 AND MOTION FOR TEMPORARY STAY

A writ of supersedeas operates to stay the execution or enforcement of any judgment, order, or other determination of a trial court or of the Court of Appeals in civil cases under Rule 8 or to stay imprisonment or execution of a sentence of death in criminal cases (other portions of criminal sentences, e.g., fines, are stayed automatically pending an appeal of right).

A motion for temporary stay under Rule 23(e) is appropriate to seek an immediate stay of execution on an *ex parte* basis pending the Court's decision on the petition for supersedeas or the substantive petition in the case.

(Caption)

****

TO THE HONORABLE (COURT OF APPEALS)(SUPREME COURT) OF NORTH CAROLINA:

(Plaintiff)(Defendant), (Name of Party), respectfully petitions this Court to issue its writ of supersedeas to stay (execution)(enforcement) of the (judgment)(order)(decree) of the [Honorable _____, Judge Presiding, (Superior)(District) Court, _____ County][North Carolina Court of Appeals] dated _____, pending review by this Court of said (judgment)(order)(decree) which (here describe the judgment, order, or decree and its operation if not stayed); and in support of this petition shows the following:

Facts

(Here set out factual background necessary for understanding the basis of the petition and justifying its filing under Rule 23: e.g., trial judge has vacated the entry upon finding security deposited under N.C.G.S. § _____ inadequate; trial judge has refused to stay execution upon motion therefor by petitioner; circumstances make it impracticable to apply first to trial judge for stay, etc.; and showing that review of the trial court judgment is being sought by appeal or extraordinary writ.)

Reasons Why Writ Should Issue

(Here set out factual and legal arguments for justice of issuing the writ; e.g., that security deemed inadequate by trial judge is adequate under the circumstances; that irreparable harm will result to petitioner if it is required to obey decree pending its review; that petitioner has meritorious basis for seeking review, etc.)

Attachments

Attached to this petition for consideration by the court are certified copies of the (judgment)(order)(decree) sought to be stayed and (here list any other certified items from the trial court record and any affidavits deemed necessary to consideration of the petition).

Wherefore, petitioner respectfully prays that this Court issue its writ of supersedeas to the [(Superior)(District) Court, _____ County)][North Carolina Court of Appeals] staying (execution)(enforcement) of its (judgment)(order)(decree) above specified, pending issuance of the mandate to this Court following its review and determination of the (appeal)(discretionary review)(review by extraordinary writ)(now pending)(the petition for which will be timely filed); and that the petitioner have such other relief as to the Court may seem proper.

Respectfully submitted this the __ day of _____, 2___.

s/_____
Attorney for Petitioner
(Address, Telephone Number, State Bar Number, and E-mail Address)

(Verification by petitioner or counsel)

(Certificate of Service upon opposing party)

Rule 23(e) provides that in conjunction with a petition for supersedeas, either as part of it or separately, the petitioner may move for a temporary stay of execution or enforcement pending the Court's ruling on the petition for supersedeas. The following form is illustrative of such a motion for temporary stay, either included as part of the main petition or filed separately.

Motion for Temporary Stay

(Plaintiff)(Defendant) respectfully applies to the Court for an order temporarily staying (execution)(enforcement) of the (judgment)(order)(decree) that is the subject of (this)(the accompanying) petition for writ of supersedeas, such order to be in effect until determination by this Court whether it shall issue its writ. In support of this Application, movant shows that (here set out the legal and factual arguments for the issuance of such a temporary stay order; e.g., irreparable harm practically threatened if petitioner must obey decree of trial court during interval before decision by Court whether to issue writ of supersedeas).

Motion for Stay of Execution

In death cases, the Supreme Court uses an order for stay of execution of death sentence in lieu of the writ of supersedeas. Counsel should promptly apply for such a stay after the judgment of the superior court imposing the death sentence. The stay of execution order will provide that it remains in effect until dissolved. The following form illustrates the contents needed in such a motion.

(Caption)

****

TO THE HONORABLE SUPREME COURT OF NORTH CAROLINA:

Now comes the defendant, (name), who respectfully shows the Court:

1. That on (date of judgment), The Honorable _____, Judge Presiding, Superior Court, _____ County, sentenced the defendant to death, execution being set for (date of execution).

2. That pursuant to N.C.G.S. § 15A-2000(d)(1), there is an automatic appeal of this matter to the Supreme Court of North Carolina, and defendant's notice of appeal was given (describe the circumstances and date of notice).

3. That the record on appeal in this case cannot be served and settled, the matter docketed, the briefs prepared, the arguments heard, and a decision rendered before the date scheduled for execution.

WHEREFORE, the defendant prays the Court to enter an order staying the execution pending judgment and further orders of this Court.

Respectfully submitted this the __ day of _____, 2___.

s/_____
Attorney for Defendant-Appellant
(Address, Telephone Number, State Bar Number, and E-mail Address)

(Certificate of Service on Attorney General, District Attorney, and Warden of Central Prison)

History Note.

287 N.C. 671; 306 N.C. 757; 324 N.C. 585; 324 N.C. 613; 345 N.C. 765; 354 N.C. 598; 354 N.C. 609; 361 N.C. 732; 363 N.C. 901; 369 N.C. 763; 371 N.C. 974; 379 N.C. 694; Order Dated 19 March 2025.

Editor's Note.

The former "Appendix of Tables and Forms," 287 N.C. 671, was repealed and replaced with Appendixes A through F on 7 December 1982, 306 N.C. 757.

Appendix E. Content of Briefs

CAPTION

Briefs should use the caption as shown in Appendix B. The title of the document should reflect the position of the filing party both at the trial level and on the appeal, e.g., DEFENDANT-APPELLANT'S BRIEF, PLAINTIFF-APPELLEE'S BRIEF, or BRIEF FOR THE STATE. A brief filed in the Supreme Court in a case decided by the Court of Appeals is captioned a "New Brief" and the position of the filing party before the Supreme Court should be reflected, e.g., DEFENDANT-APPELLEE'S NEW BRIEF (when the State has appealed from the Court of Appeals in a criminal matter).

The cover page should contain only the caption of the case. Succeeding pages should present the following items, in order.

INDEX OF THE BRIEF

Each brief should contain a topical index beginning at the top margin of the first page following the cover, in substantially the following form:

INDEX

TABLE OF CASES AND AUTHORITIES ii

ISSUES PRESENTED 1

STATEMENT OF THE CASE 2

STATEMENT OF THE GROUNDS FOR APPELLATE REVIEW 2

STATEMENT OF THE FACTS 2

ARGUMENT:

[STANDARD OF REVIEW [May be placed at either the beginning of the discussion of each issue or under a separate heading placed before the beginning of the discussion of all issues] ..... 5]

I. THE TRIAL COURT COMMITTED REVERSIBLE ERROR IN DENYING THE DEFENDANT'S MOTION TO SUPPRESS HIS INCULPATORY STATEMENT BECAUSE THAT STATEMENT WAS THE PRODUCT OF AN ILLEGAL DETENTION 6

* * *

IV. THE TRIAL COURT COMMITTED REVERSIBLE ERROR IN DENYING THE DEFENDANT'S MOTION TO

SUPPRESS THE FRUITS OF A WARRANTLESS SEARCH OF HIS APARTMENT BECAUSE THE CONSENT GIVEN WAS THE PRODUCT OF POLICE COERCION 18

CONCLUSION 22

CERTIFICATE OF SERVICE 23

APPENDIX:

VOIR DIRE DIRECT EXAMINATION OF [NAME] .....App. 1–7

VOIR DIRE CROSS-EXAMINATION OF [NAME] .....App. 8–11

VOIR DIRE DIRECT EXAMINATION OF OFFICER [NAME] .....App. 12–17

VOIR DIRE CROSS-EXAMINATION OF OFFICER [NAME] .....App. 18–20

* * * * *

TABLE OF CASES AND AUTHORITIES

This table should begin at the top margin of the page following the index. Page references should be made to each citation of authority, as shown in the example below.

TABLE OF CASES AND AUTHORITIES

Dunaway v. New York, 442 U.S. 200, 99 S. Ct. 2248, 60 L. Ed. 2d 824 (1979) 11
State v. Perry, 298 N.C. 502, 259 S.E.2d 496 (1979) 14
State v. Reynolds, 298 N.C. 380, 259 S.E.2d 843 (1979) 12
United States v. Mendenhall, 446 U.S. 544, 100 S. Ct. 1870, 64 L. Ed. 2d 497 (1980) 14

4th Amendment, U.S. Constitution 28
14th Amendment, U.S. Constitution 28

N.C.G.S. § 15A-221 29
N.C.G.S. § 15A-222 28
N.C.G.S. § 15A-223 29

* * * * *

ISSUES PRESENTED

The inside caption is on page 1 of the brief, followed by the Issues Presented. The phrasing of the issues presented need not be identical to that set forth in the proposed issues on appeal in the record. The appellee's brief need not restate the issues unless the appellee desires to present additional issues to the Court.

ISSUES PRESENTED

I. DID THE TRIAL COURT COMMIT REVERSIBLE ERROR IN DENYING THE DEFENDANT'S MOTION TO SUPPRESS HIS INCULPATORY STATEMENT BECAUSE THAT STATEMENT WAS THE PRODUCT OF AN ILLEGAL DETENTION?

* * *

STATEMENT OF THE CASE

If the Issues Presented carry beyond page 1, the Statement of the Case should follow them, separated by the heading. If the Issues Presented do not carry over, the Statement of the Case should begin at the top of page 2 of the brief.

Set forth a concise chronology of the course of the proceedings in the trial court and the route of appeal, including pertinent dates. For example:

STATEMENT OF THE CASE

The defendant, [name], was convicted of first-degree rape at the [date], Criminal Session of the Superior Court, _____ County, the Honorable [name] presiding, and received _____ sentence for the _____ felony. The defendant gave written notice of appeal in open court to the Supreme Court of North Carolina at the time of the entry of judgment on [date]. The transcript was ordered on [date] and was delivered to the parties on [date].

A motion to extend the time for serving and filing the record on appeal was allowed by the Supreme Court on [date]. The record was filed and docketed in the Supreme Court on [date].

STATEMENT OF THE GROUNDS FOR APPELLATE REVIEW

Set forth the statutory basis for permitting appellate review. For example, in an appeal from a final judgment to the Court of Appeals, the appellant might state that the ground for appellate review is a final judgment of the superior court under N.C.G.S. § 7A-27(b). If the appeal is based on N.C. R. Civ. P. 54(b), the appellant must also state that there has been a final judgment as to one or more but fewer than all of the claims or parties and that there has been a certification by the trial court that there is no just reason for delay. If the appeal is from an interlocutory order or determination based on a substantial right, the appellant must present, in addition to the statutory authorization, facts and argument showing the substantial right that will be lost, prejudiced, or less than adequately protected absent immediate appellate review.

STATEMENT OF THE FACTS

The facts constitute the basis of the dispute or criminal charges and the procedural mechanics of the case if they are significant to the issues presented. The facts should be stated objectively and concisely and should be limited to those that are relevant to the issue or issues presented.

Do not include verbatim portions of the record or other matters of an evidentiary nature in the statement of the facts. Summaries and record or transcript citations should be used instead. No appendix should be compiled simply to support the statement of the facts.

The appellee's brief need contain no statement of the case or facts if there is no dispute. The appellee may state additional facts where deemed necessary, or, if there is a dispute over the facts, may restate the facts as they appear from the appellee's viewpoint.

ARGUMENT

Each issue will be set forth in uppercase typeface as the party's contention, e.g.:

I. THE TRIAL COURT COMMITTED REVERSIBLE ERROR IN DENYING THE DEFENDANT'S MOTION TO SUPPRESS HIS INCULPATORY STATEMENT BECAUSE THAT STATEMENT WAS THE PRODUCT OF AN ILLEGAL DETENTION.

The standard of review for each issue presented shall be set out in accordance with Rule 28(b)(6).

Parties should feel free to summarize, quote from, or cite to the record or transcript during the presentation of argument. If the transcript option is selected under Rule 9(c), the appendix to the brief may be needed, as described in Rule 28 and below.

When statutory or regulatory materials are cited, the relevant portions should be quoted in the body of the argument or placed in the appendix to the brief, as required by Rule 28(d)(1)c.

CONCLUSION

State briefly and clearly the specific objective or relief sought in the appeal. It is not necessary to restate the party's contentions, since they are presented both in the index and as headings to the individual arguments.

SIGNATURE AND CERTIFICATE OF SERVICE

Following the conclusion, the brief must be dated and signed, with the attorney's typed or printed name, mailing address, telephone number, State Bar number, and e-mail address, all indented to the center of the page.

The Certificate of Service is then shown with a centered, uppercase heading. The certificate itself, describing the manner of service upon the opposing party with the complete mailing address of the party or attorney served, is followed by the date and the signature of the person certifying the service.

APPENDIX TO THE BRIEF UNDER THE TRANSCRIPT OPTION

Rules 9(c) and 28 require additional steps to be taken in the brief to point the Court to appropriate excerpts from the transcript considered essential to the understanding of the arguments presented.

Counsel are encouraged to cite, narrate, and quote freely within the body of the brief. However, if because of length a verbatim quotation is not included in the body of the brief, that portion of the transcript and others like it shall be compiled into an appendix to the brief to be placed at the end of the brief, following all signatures and certificates. Counsel should not attach the entire transcript as an appendix to support issues involving a directed verdict, sufficiency of the evidence, or the like.

The appendix should be prepared to be clear and readable, distinctly showing the transcript page or pages from which each passage is drawn. Counsel may reproduce transcript pages themselves, clearly indicating those portions to which attention is directed. The appendix should include a table of contents, showing the items contained in the appendix and the pages in the appendix where those items appear. The appendix shall be paginated separately from the text of the brief. For example:

CONTENTS OF APPENDIX

VOIR DIRE DIRECT EXAMINATION OF [NAME] ..... App. 1

VOIR DIRE CROSS-EXAMINATION OF [NAME] ..... App. 9

VOIR DIRE DIRECT EXAMINATION OF OFFICER [NAME] ..... App. 13

VOIR DIRE CROSS-EXAMINATION OF OFFICER [NAME] ..... App. 19

* * * * *

The appendix will be printed as submitted with the brief to which it is appended. Therefore, clarity of image is extremely important.

History Note.

287 N.C. 671; 306 N.C. 757; 324 N.C. 585; 324 N.C. 613; 354 N.C. 598; 354 N.C. 609; 356 N.C. 702; 359 N.C. 883; 363 N.C. 901; 369 N.C. 763.

Editor's Note.

The former "Appendix of Tables and Forms," 287 N.C. 671, was repealed and replaced with Appendixes A through F on 7 December 1982, 306 N.C. 757.

Appendix F. Fees and Costs

Fees and costs are provided by order of the Supreme Court and apply to proceedings in either appellate court. A fee payment is due when the document to which it pertains is filed and must be submitted to the clerk of the appropriate appellate court. A person may submit payment for an applicable fee by hand delivery or mail.

There is no fee for filing a motion in a cause; other fees are as follows:

Notice of Appeal, Petition for Discretionary Review, Petition for Writ of Certiorari or other extraordinary writ, Petition for Writ of Supersedeas—docketing fee of $10.00 for each document, i.e., docketing fees for a notice of appeal and petition for discretionary review filed jointly would be $20.00.

Petitions to rehear require a docketing fee of $20.00. (Petitions to rehear are only entertained in civil cases.)

An appeal bond or a monetary deposit of $250.00 is required in civil cases per Rules 6 and 17. The bond should be filed contemporaneously with the record in the Court of Appeals and with the notice of appeal in the Supreme Court. The bond will not be required in cases brought by petition for discretionary review or certiorari unless and until the court allows the petition.

Costs for printing documents are $1.75 per printed page. The appendix to a brief under the transcript option of Rules 9(c) and 28(b) and (c) will be reproduced as is, but billed at the rate of the printing of the brief. Both appellate courts will bill the parties for the costs of printing their documents.

Court costs on appeal total $9.00, plus the cost of copies of the opinion to each party filing a brief, and are imposed when a notice of appeal is withdrawn or dismissed, or when the mandate is issued following the opinion in a case.

Photocopying charges are $.20 per page. The facsimile transmission fee for documents sent from the clerk's office, which is in addition to standard photocopying charges, is $5.00 for the first twenty-five pages and $.20 for each page thereafter.

The fee for a certified copy of an appellate court decision, in addition to photocopying charges, is $10.00.

History Note.

287 N.C. 671; 306 N.C. 757; 314 N.C. 683; 324 N.C. 585; 324 N.C. 613; 327 N.C. 671; 343 N.C. 769; 354 N.C. 598; 354 N.C. 609; 363 N.C. 901; 369 N.C. 763; 379 N.C. 694.

Editor's Note.

The former "Appendix of Tables and Forms," 287 N.C. 671, was repealed and replaced with Appendixes A through F on 7 December 1982, 306 N.C. 757.

Reporter Volume	Page(s)	Rules Affected*	Key Dates**
287 N.C.	671–780	Complete Rule Set	Adopted 13 June 1975
288 N.C.	737	Rule 30	Done 18 December 1975
289 N.C.	731	Rule 30	Adopted 3 May 1976
291 N.C.	721	Rule 14	Adopted 31 January 1977
292 N.C.	739–40	Rules 18, 19	Adopted 21 June 1977
294 N.C.	749	Rule 27	Adopted 7 March 1978
295 N.C.	741	Rules 7, 17	Adopted 19 June 1978 Effective 1 July 1978
295 N.C.	742	Rules 4, 27	Approved 4 October 1978 Effective 1 January 1979
296 N.C.	743	Rule 30	Adopted 5 February 1979
301 N.C.	731	Rule 13	Adopted 7 October 1980 Effective 1 January 1981
301 N.C.	731–32	Rules 14, 15	Adopted 7 October 1980 Effective 1 January 1981
301 N.C.	732	Rule 18	Adopted 7 October 1980 Effective 1 January 1981
301 N.C.	733	Rule 23	Approved 2 December 1980 Effective 1 January 1981

Reporter Volume	Page(s)	Rules Affected*	Key Dates**
301 N.C.	734	Rule 28	Approved 27 January 1981 Effective 1 July 1981
304 N.C.	739–40	Rules 21, 26	Ordered 5 May 1981 Effective for all appeals arising from cases filed in the court of original jurisdiction after 1 July 1982
303 N.C.	715–16	Rules 9, 28	Ordered 10 June 1981 Effective 1 October 1981 and relates to all appeals docketed on and after that date
303 N.C.	716–17	Rule 10	Ordered 10 June 1981 Applies to every case the trial of which begins on or after 1 October 1981
303 N.C.	717–18	Rule 30	Ordered 10 June 1981 Effective 1 July 1981
304 N.C.	738	Rule 15	Ordered 18 November 1981
304 N.C.	737	Rules 9, 28	Adopted 12 January 1982 Effective for all appeals docketed after 15 March 1982
304 N.C.	741	Rule 26	Adopted 11 February 1982
304 N.C.	742	Rule 29	Adopted 3 March 1982
305 N.C.	783	Rule 4	Adopted 13 July 1982

Reporter Volume	Page(s)	Rules Affected*	Key Dates**
306 N.C.	757–89	Rules 26, 28; All Appendixes	*Rule 26*: Adopted 7 December 1982 Effective for all documents filed on or after 1 March 1983 *Rule 28; All Appendixes*: Adopted 7 December 1982 Effective 1 January 1983
309 N.C.	831	Rule 10	Adopted 7 July 1983
309 N.C.	830	Rule 16	Adopted 3 November 1983 Effective with notices of appeal filed in the Supreme Court on and after 1 January 1984
312 N.C.	803–35	Rules 1, 6, 8, 9, 10, 11, 12, 13, 14, 21, 26, 27, 28, 31, 32	*Rules 1, 6, 8, 13, 21, 27, 28, 31, 32*: Adopted 27 November 1984 Effective 1 February 1985 *Rules 9, 10, 11, 12, 14*: Adopted 27 November 1984 Effective 1 February 1985 and applicable to all appeals in which the notice of appeal is filed on or after that date *Rule 26*: Adopted 27 November 1984 Effective for documents filed on or after 1 February 1985

Reporter Volume	Page(s)	Rules Affected*	Key Dates**
313 N.C.	778–83	Rules 18, 19, 20	Adopted 27 February 1985 "Inasmuch as these rules make the procedures for direct appeals from administrative agencies to the appellate division consistent with the rules for bringing appeals from the courts of the trial division which we amended on 27 November 1984, to be effective 1 February 1985, these amendments shall be applicable to all appeals in which the notice of appeal is filed on or after 15 March 1985"
314 N.C.	683–86	Appendixes A, F	Adopted 7 October 1985
322 N.C.	844–49	Rules 4, 21, 29, 31	*Rules 4, 21*: Adopted 3 September 1987 Applicable to all appeals from judgments entered on or after 24 July 1987 *Rules 29, 31*: Adopted 3 September 1987 Applicable to all appeals in which the notice of appeal is filed on or after 1 October 1987
322 N.C.	850–67	Rules 13, 14, 15, 16, 26, 28	Adopted 30 June 1988 Effective 1 September 1988

Reporter Volume	Page(s)	Rules Affected*	Key Dates**
368 N.C.	1067–98	Rules 3, 4, 7, 9, 10, 11, 12, 15, 21, 25, 27, 31, 34, 39	*Rules 15, 31, 39*: Adopted 8 December 1988 Effective 1 January 1989 *Rules 25, 34*: Adopted 8 December 1988 Effective 1 July 1989 *Rules 21*: Adopted 8 December 1988 Applicable to all cases in which the superior court order is entered on or after 1 July 1989 *Rules 3, 4, 7, 9, 10, 11, 12, 27*: Adopted 8 December 1988 Effective for all judgments of the trial division entered on or after 1 July 1989
324 N.C.	585–612	Rules 3, 4, 7, 9, 13, 14, 15, 28; All Appendixes	*Rules 3, 7, 9*: Adopted 8 June 1989 Effective for all judgments of the trial tribunal entered on or after 1 July 1989 *Rules 13, 14, 15, 28*: Adopted 8 June 1989 Effective 1 September 1989 *All Appendixes*: Adopted 8 June 1989 Effective 1 July 1989 *Rule 4*: Adopted 8 June 1989 "The amendments to Rule 4(a), adopted 8 December 1988 to become effective 1 July 1989, are hereby rescinded. Rule 4 shall continue in effect without change"

Reporter Volume	Page(s)	Rules Affected*	Key Dates**
324 N.C.	613–716	Complete Rule Set	Effective 1 July 1989
327 N.C.	671–711	Rules 6, 7, 9, 11, 16, 17, 18, 26, 27, 28, 29; Appendixes A, C, F	Adopted 26 July 1990 Effective 1 October 1990
368 N.C.	1067, 1099–101	41, 42	Adopted 3 March 1994 Effective 15 March 1994 and Rule 41 shall apply to all appeals docketed in the Court of Appeals on or after that date
337 N.C.	821	Rule 3	(*No date reported*)
343 N.C.	769	Appendix F	Adopted 9 May 1996 Effective 1 July 1996
345 N.C.	765–74	Rules 3, 8, 9, 11, 12, 14, 15, 18, 21, 23, 25, 26; Appendixes A, D	*Rules 3, 9, 11, 12, 25; Appendixes A, D*: Adopted 6 March 1997 *Rules 8, 14, 15, 18, 21, 23, 26*: Adopted 6 March 1997 Effective 1 July 1997
348 N.C.	724	Rule 4	Adopted 2 October 1997
347 N.C.	679–84	Rules 7, 9, 11, 18	Adopted 6 November 1997 Effective 1 February 1998
350 N.C.	857	Rule 7	Adopted 8 April 1999
350 N.C.	858	Rule 34	Adopted 8 April 1999

Reporter Volume	Page(s)	Rules Affected*	Key Dates**
350 N.C.	859–60	Rule 33A	Adopted 6 May 1999 Effective 1 January 2000 and applies to all actions and proceedings pending in the Appellate Division on and after that date
351 N.C.	659–62	Rule 26	Adopted 4 November 1999 Effective 15 November 1999
354 N.C.	598–609	Rules 3, 4, 7, 9, 15, 26, 27, 28, 31, 33, 40, 42; All Appendixes; "Minor typographical and grammatical corrections have been made throughout the Rules"	Adopted 18 October 2001 Effective 31 October 2001
354 N.C.	609–711	Complete Rule Set	(*No date reported*)
355 N.C.	776	Rule 30	Adopted 18 October 2001 Effective 1 January 2002
356 N.C.	701	Rules 7, 26	Adopted 15 August 2002
356 N.C.	701–02	Rule 21	Adopted 15 August 2002
356 N.C.	702	Appendixes B, E	Adopted 15 August 2002
356 N.C.	706–09	Rules 26, 28, 30; Appendix B	Adopted 3 October 2002 Effective 7 October 2002
357 N.C.	665–68	Rules 3, 4, 12, 13, 14, 26; Appendix A	Adopted 1 May 2003

Reporter Volume	Page(s)	Rules Affected*	Key Dates**
358 N.C.	824–29	Appendix B	Adopted 6 May 2004 Effective 12 May 2004
358 N.C.	829–31	Rules 3, 26, 30, 37, 41	Adopted 6 May 2004 Effective 12 May 2004
358 N.C.	831–34	Rule 9	Adopted 6 May 2004 Effective 12 May 2004
358 N.C.	834–37	Rule 11	Adopted 6 May 2004 Effective 12 May 2004
358 N.C.	837–39	Rule 18	Adopted 6 May 2004 Effective 12 May 2004
358 N.C.	840–42	Rule 28	Adopted 6 May 2004 Effective 12 May 2004
359 N.C.	883–88	Rules 13, 14, 15, 28, 30; Appendixes A, B, E	Adopted 18 August 2005 Effective 1 September 2005
360 N.C.	661–64	Rules 3, 3A	Adopted 3 November 2005 Effective 1 March 2006
360 N.C.	820–23	Rules 3, 3A	Adopted 28 February 2006 Effective 1 May 2006 and applies to cases appealed on or after that date
360 N.C.	852–55	Rules 3, 3A	Adopted “28th 27th day of April, 2006” Effective 1 May 2006 and applies to cases appealed on or after that date

Reporter Volume	Page(s)	Rules Affected*	Key Dates**
361 N.C.	732–44	Rules 7, 9, 11, 12, 18, 28, 37; Appendix D	*Rules 7, 9, 11, 12, 18, 37; Appendix D*: Adopted 5 October 2006 Effective 1 March 2007 and applies to cases appealed on or after that date *Rule 28*: Adopted 16 November 2006 Effective 1 March 2007 and applies to cases appealed on or after that date
362 N.C.	699–702	Rule 3A	Adopted 11 June 2008 Effective 1 December 2008
363 N.C.	901–1023	Complete Rule Set	Adopted 2 July 2009 Effective 1 October 2009 and applies to cases appealed on or after that date
365 N.C.	582	Rule 25	Effective 15 March 2012
365 N.C.	583–85	Rules 9, 13, 14, 15, 27, 28	Effective 15 April 2013
367 N.C.	954	Rule 21	Ordered 10 April 2015
369 N.C.	763–885	Complete Rule Set	Ordered 20 December 2016 Effective 1 January 2017 and applies to cases appealed on or after that date
370 N.C.	761–62	Rule 31.1	Ordered 22 December 2016
369 N.C.	955–58	Rule 7	Ordered 16 March 2017
370 N.C.	763–72	Rules 28, 29, 33.1	Ordered 1 March 2018

Reporter Volume	Page(s)	Rules Affected*	Key Dates**
371 N.C.	974–1036	Rules 3, 3.1, 4, 9, 11, 12, 13, 18, 26, 28, 30, 37, 41, 42; Appendixes A, B, D	Ordered 19 December 2018 Effective 1 January 2019
372 N.C.	902–05	Rules 3.1, 33.1	*Rule 3.1*: Ordered 4 September 2019 Effective 11 September 2019 *Rule 33.1*: Ordered 4 September 2019 Effective for secure-leave periods designated on or after 11 September 2019
374 N.C.	941–42	Not Specified***	Ordered 27 March 2020
375 N.C.	1034–78	Rules 7, 9, 10, 11, 12, 18, 27, 28; Appendixes A, B	Ordered 17 November 2020 Effective 1 January 2021 and applies to cases that are appealed on or after that date
379 N.C.	694–769	Rules 3.1, 5, 6, 7, 9, 10, 11, 12, 13, 14, 15, 17, 18, 21, 22, 23, 24, 26, 27, 28, 30, 34, 37, 39; Appendixes B, C, D, F	Ordered 13 October 2021 Effective 1 January 2022 and applies to cases that are appealed on or after that date
384 N.C.	699–701	Rule 26	Ordered 1 March 2023, *nunc pro tunc* 13 February 2023 Effective 13 February 2023 and applies to cases that are appealed on or after that date
385 N.C.	918–35	Rules 15, 21, 22, 23, 28, 28.1, 31	Ordered 18 October 2023 Effective 20 November 2023

***** Rules are titled as they appeared at the time of publication.

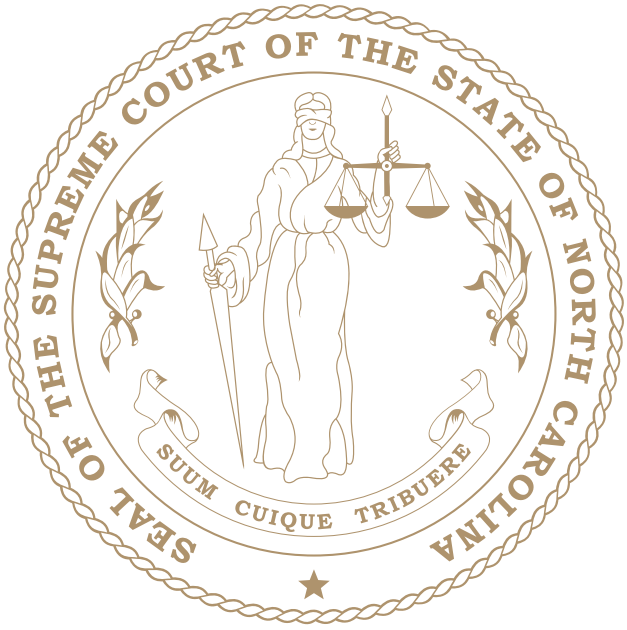
****** The type of date provided for each published entry (e.g., "Adopted," "Effective," "Ordered") reflects the information that was preserved in the North Carolina Reports.

******* Order granted emergency relief in response to the COVID-19 pandemic.

Current Slip Orders	Rules Affected	Key Dates
Order Dated 19 March 2025	Rules 14, 15, 16; Appendixes A, D	Ordered 19 March 2025 Effective 1 April 2025
Order Dated 20 August 2025	Rule 36	Ordered 20 August 2025 Effective 2 September 2025

Document ID

North Carolina Rules of Appellate Procedure – Codified 2 September 2025



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www.NCcourts.gov/courts/supreme-court